

THE LEGAL METROLOGY (PACKAGED COMMODITIES) RULES, 2011¹

In exercise of the powers conferred by sub-section (1) read with clauses (j) and (q) of sub-section (2) of section 52 of the Legal Metrology Act, 2009 (1 of 2010), the Central Government hereby makes the following rules, namely:—

1. Short title and commencement.—(1) These rules may be called the Legal Metrology (Packaged Commodities) Rules, 2011.

(2) They shall come into force on the 1st day of April, 2011.

2. Definitions.—In these rules, unless the context otherwise requires,—

(a) “Act” means the Legal Metrology Act, 2009 (1 of 2010);

²[(aa) “Consumer” shall have the same meaning as assigned to it in clause (d) of sub-section (1) of section 2 of the Consumer Protection Act, 1986 (68 of 1986);]

(b) “dealer” in relation to any commodity in packaged form, means a person who, or a firm which carries on directly or otherwise, the business of buying, selling, supplying or distributing any such commodity whether for cash or for deferred payment or for commission, remuneration or other valuable consideration, and includes a commission agent who carries on such business on behalf of any principal, but does not include a manufacturer who manufactures any commodity which is sold or distributed in a packaged form except where such commodity is sold by such manufacturer to any other person other than a dealer;

³[(bb) “industrial consumer” means the consumer who buys packaged commodities directly from the manufacturer or from an importer or from wholesale dealer for use by that industry and the package shall have declaration ‘not for retail sale’;]

⁴[(bc) “institutional consumer” means the institution which buys packaged commodities bearing a declaration ‘not for retail sale’, directly from

1. *Vide* G.S.R. 202(E), dated 7th March, 2011, published in the Gazette of India, Extra., Pt. II, Sec. 3(i), dated 9th March, 2011.

2. *Ins.* by G.S.R. 629(E), dated 23rd June, 2017 (w.e.f. 1-1-2018).

3. *Subs.* by G.S.R. 385(E), dated 14th May, 2015, (w.e.f. 14-5-2015). Earlier clauses (bb) and (bc) were inserted by G.S.R. 359(E), dated 6th June, 2013 (w.e.f. 6-6-2013). Clauses (bb) and (bc), before substitution, stood as under:

“(bb) “industrial consumer” means the consumer who buys packaged commodities directly from the manufacturer for use by that industry;”

4. *Subs.* by G.S.R. 629(E), dated 23rd June, 2017 for clause (bc) (w.e.f. 1-1-2018). Earlier clause -(bc) was substituted by G.S.R. 385(E), dated 24th May, 2015 (w.e.f. 14-5-2015). Clause (bc), before substitution by G.S.R. 629(E), dated 23rd June, 2017, stood as under:

“(bc) “institutional consumer” means the institution who hires or avails of the facilities or services in connection with transport, hotel, hospital or other organization which buy packaged commodities directly from the manufacturer or from an importer or from wholesale dealer for use by that institution, and the package shall have declaration ‘not for retail sale’;”.

the manufacturer or from an importer or from wholesale dealer for use by that institution and not for commercial or trade purposes;]

- 1[(bd) "E-commerce" means buying and selling of goods and services including digital products over digital and electronic network;
- (be) "E-commerce entity" means a company incorporated under the Companies Act, 1956 or the Companies Act, 2013 or a foreign company covered under clause (42) of section 2 of the Companies Act, 2013, or an office, branch or agency in India covered under sub-clause (ii) of clause (v) of section 2 of the Foreign Exchange Management Act, 1999 (42 of 1999) owned or controlled by a person resident outside India and conducting e-commerce business;
- (bf) "marketplace based model of e-commerce" means providing of an information technology platform by an e-commerce entity on a digital and electronic network to act as a facilitator between buyer and seller;]
- (c) "lot" means—
- (i) in the case of packages which have been stored, the total number of such packages stored; and
 - (ii) in the case of packages which are on or at the end of the packing line, the maximum hourly output of packages;
- (d) "manufacturer" in relation to any commodity in packaged form, means a person who or a firm which produces, makes or manufactures such commodity and includes a person or firm which puts, or causes to be put, any mark on any packaged commodity, not produced, made or manufactured by him or it, and the mark claims the commodity in the package to be a commodity produced, made or manufactured by such person or firm as the case may be;
- (e) "Maximum permissible error", in relation to the quantity contained in an individual package, means an error in deficiency which, subject to the provision of these rules, does not exceed the limits specified in the First Schedule;
- (f) "net quantity", in relation to commodity contained in a package, means the quantity by weight, measure or number of such commodity contained in that package, excluding the packaging or wrappers;
- (g) "packer" means a person who, or a firm which pre-packs any commodity, whether in any bottle, tin, wrapper or otherwise, in units suitable for sale whether wholesale or retail;
- (h) "principal display panel", in relation to a package, means the total surface area of the package where the information required under these rules are to be given in the following manner, namely:—
- (i) all the information could be grouped together and given at one place; or

- (ii) the pre-printed information could be grouped together and given in one place and on line information grouped together in other place;
- (i) "quantity" in relation to commodity contained in a package, means the quantity by weight, measure or number of such commodity contained in that package;
- (j) "retail dealer" in relation to any commodity in packaged form means a dealer who directly sells such packages to the consumer and includes, in relation to packages as are sold directly to the consumer, a wholesale dealer who makes such direct sale to the consumer;
- (k) "retail package" means the packages which are intended for retail sale to the ultimate consumer for the purpose of consumption of the commodity contained therein and includes the imported packages:
¹[Provided that for the purposes of "retail food package", the definition of the same contained in the rules or regulations made under the Food Safety and Standards Act, 2006 (34 of 2006) shall apply.]
- (l) "retail sale", in relation to a commodity, means the sale, distribution or delivery of such commodity through retail sales shops, agencies or other instrumentalities for consumption by an individual or a group of individuals or any other consumer;
- ²[(m) "retail sale price" means the maximum price at which the commodity in packaged form may be sold to the consumer inclusive of all taxes;]
- (n) "section" means a section of the Act;
- (o) "Schedule" means a Schedule appended to these rules;
- (p) "standard package" means a package containing the specified quantity of a commodity;
- (q) "wholesale dealer" in relation to any commodity in packaged form means a dealer who does not directly sell such commodity to any consumer but distributes or sells such commodity through one or more intermediaries;

1. Ins. by G.S.R. 385(E), dated 14th May, 2015 (w.e.f. 14-5-2015). Earlier proviso was omitted by G.S.R. 359(E), dated 6th June, 2013 (w.e.f. 6-6-2013). The proviso, before omission by G.S.R. 359(E), dated 6th June, 2013, stood as under:

"Provided that for the purposes of this clause, the expression 'ultimate consumer' shall not include industrial or institutional consumers;"

2. Subs. by G.S.R. 629(E), dated 23rd June, 2017 for clause (m) (w.e.f. 1-1-2018). Clause (m), before substitution, stood as under:

"(m) "retail sale price" means the maximum price at which the commodity in packaged form may be sold to the ultimate consumer and the price shall be printed on the package in the manner given below;

'Maximum or Max. retail price Rs. / ₹..... inclusive of all taxes or in the form MRP Rs. / ₹..... incl., of all taxes after taking into account the fraction of less than fifty paise to be rounded off to the preceding rupee and fraction of above 50 paise and up to 95 paise to the rounded off to fifty paise;"

- (r) "wholesale package" means a package containing—
- (i) a number of retail packages, where such first mentioned package is intended for sale, distribution or delivery to an intermediary and is not intended for sale direct to a single consumer; or
 - (ii) a commodity sold to an intermediary in bulk to enable such intermediary to sell, distribute or deliver such commodity to the consumer in similar quantities; or
 - (iii) packages containing ten or more than ten retail packages provided that the retail packages are labeled as required under the rules.
- (s) words and expressions used herein and not defined but defined in the Act, shall have the meanings respectively assigned to them in the Act.

CHAPTER II

PROVISIONS APPLICABLE TO PACKAGES INTENDED FOR RETAIL SALE

¹[3. **Application of Chapter.**—The provisions of this chapter shall not apply to—

- (a) packages of commodities containing quantity of more than 25 kilogram or 25 litre;
- (b) cement, fertilizer and agricultural farm produce sold in bags above 50 kilogram; and
- (c) packaged commodities meant for industrial consumers or institutional consumers.]

4. Regulation for pre-packing and sale etc., of commodities in packaged form.—On and from the commencement of these rules, no person shall pre-pack or cause or permit to be pre-packed any commodity for sale, distribution or delivery unless the package in which the commodity is pre-packed bears thereon, or on a label is securely affixed thereto, such declarations as are required to be made under these rules.

Explanation.—The existence of packages without the declaration of retail sale price within the manufacturer's premises shall not be construed as a violation of these rules and it shall be ensured that all packages leaving the premises of manufacturer for their destination shall have declaration of retail sale price on them as required in this rule.

5. Specific commodities to be packed and sold in recommended standard packages.—²[(1)]The commodities specified in the Second Schedule shall be packed for sale, distribution or delivery in such standard quantities as are specified in that Schedule:]

1. Subs. by G.S.R. 629(E), dated 23rd June, 2017, for rule 3 (w.e.f. 1-1-2018). Earlier rule 3 was amended by G.S.R. 359(E), dated 6th June, 2013 (w.e.f. 6-6-2013). Rule 3, before substitution, stood as under:

"3. *Applicability of the Chapter.*—The provisions of this Chapter shall not apply to,—

- (a) packages of commodities containing quantity of more than 25 kg or 25 litre excluding cement and fertilizer sold in bags up to 50 kg; and
- (b) packaged commodities meant for industrial consumers or institutional consumers."

2. Rules 5 re-numbered as sub-rule(1) thereof, by G.S.R. 427(E), dated 5th June, 2012 (w.e.f. 5-6-2012).

¹[Provided that if the Competent Authority under the Essential Commodities Act, 1955 (10 of 1955) fixed and notified the standard quantity of any essential commodity, the standard quantity of such essential commodities as fixed and notified shall prevail.]

²[***]

³[(2) When one or more packages intended for retail sale are grouped together for being sold as a retail package on promotional offer, every package of the group shall comply with provisions of rule 6.]

³[(3) Notwithstanding anything contained in the Second Schedule, the manufacturer or importer may sell the value based package in terms of Re. 1, Rs. 2, Rs. 3, Rs. 4, Rs. 5, Rs. 6, Rs. 7, Rs. 8, Rs. 9 and Rs. 10 after making the other declarations specified in rule 6.]

6. Declarations to be made on every package.—(1) Every package shall bear thereon or on label securely affixed thereto, a definite, plain and conspicuous declaration made in accordance with the provisions of this chapter as, to—

- (a) the name and address of the manufacturer, or where the manufacturer is not the packer, the name and address of the manufacturer and packer and for any imported package the name and address of the importer shall be mentioned.

Explanation I.—If any name and address of a company is mentioned on the label without any qualifying words 'manufactured by' or 'packed by', it shall be presumed that such name and address shall be that of the manufacturer and the liability shall be determined accordingly;

Explanation II.—If the brand name and address of the brand owner appear on the label as a marketer, then the brand owner shall be held responsible for any violation of these rules and action as may be required shall be initiated against the deemed manufacturer and in the event of more than one name and address appearing in the label, prosecution shall be launched against the manufacturer indicated on the label in the first place and not against all of them.

⁴[*Explanation III.*—In respect of packages containing food articles, the provisions of this clause shall not apply, but the provisions of, and the requirements specified in the Food Safety and Standards Act, 2006 (34 of 2006) and the rules made thereunder shall apply;]

1. Ins. by G.S.R. 858(E), dated 7th September, 2016 (w.e.f. 7-9-2016).

2. Proviso omitted by G.S.R. 784(E), dated 24th October, 2011, read with corrigendum G.S.R. 832(E), dated 23rd November, 2011 and G.S.R. 426(E), dated 5th June, 2012 (w.e.f. 1-11-2012). The proviso, before omission, stood as under:

"Provided that if a commodity specified in the Second Schedule is packed in a size other than that prescribed in that Schedule, a declaration that 'Not a standard pack size under the Legal Metrology (Packaged Commodities) Rules, 2011 or 'non-standard size under the Legal Metrology (Packaged Commodities) Rules, 2011' shall be made prominently on the label of such package."

3. Ins. by G.S.R. 427(E), dated 5th June, 2012 (w.e.f. 5-6-2012).

4. Subs. by G.S.R. 629(E), dated 23rd June, 2017, for *Explanation III* (w.e.f. 1-1-2018). Earlier it was amended by G.S.R. 427(E), dated 5th June, 2012 (w.e.f. 5-6-2012). *Explanation III*, before substitution, stood as under:

- ¹[(aa) The name of the country of origin or manufacture or assembly in case of imported products shall be mentioned on the package;]
- (b) The common or generic names of the commodity contained in the package and in case of packages with more than one product, the name and number or quantity of each product shall be mentioned on the package.
- (c) The net quantity, in terms of the standard unit of weight or measure, of the commodity contained in the package or where the commodity is packed or sold by number, the number of the commodity contained in the package shall be mentioned.
- (d) The month and year in which the commodity is manufactured or pre-packed or imported shall be mentioned in the package:

Provided that for packages containing food articles, the provisions of the ²[Foods Safety and Standards Act, 2006 (34 of 2006)] and the rules made thereunder shall apply:

Provided further that nothing in this sub-clause shall apply in case of packages containing seeds which are labelled and certified under the provisions of the Seeds Act, 1966 (54 of 1966) and the rules made there under:

³[***]

Provided also that for packages containing cosmetics products, the provisions of the Drugs and Cosmetics Rules, 1945 shall apply.

- ¹[(da) If a package contains a commodity which may become unfit for human consumption after a period of time, the best before or use by the date, month and year shall also be mentioned on the label:

Provided that nothing in this clause shall apply if a provision in this regard is made in any other law.

Explanation 1.—For the purposes of this sub-rule,—

- (a) the expression “best before” means the date which signifies the end of the period under any stated storage conditions during which the product shall remain fully marketable and shall retain any specific qualities for which tacit or express claims have been made and beyond the date commodity may still be safe for consumption:

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“*Explanation III.*—In respect of packages containing food articles, the provisions of this sub-rule shall not apply, and instead, the requirement of the Foods Safety and Standards Act, 2006 (34 of 2006) and the rules made thereunder shall apply.”.

1. Ins. by G.S.R. 629(E), dated 23rd June, 2017 (w.e.f. 1-1-2018).

2. Subs. by G.S.R. 427(E), dated 5th June, 2012, for “Prevention of Food Adulteration Act, 1954 (37 of 1954)” (w.e.f. 5-6-2012).

3. Third proviso omitted by G.S.R. 784(E), dated 24th October, 2011, read with corrigendum G.S.R. 832(E), dated 23rd November, 2011 (w.e.f. 1-7-2012). The third proviso, before omission, stood as under:

“Provided that a manufacturer may indicate the month and year using a rubber stamp without overwriting:”.

- (b) the expression "Use by Date" means the date which signifies the end of the estimated period under any stated storage conditions after which the product shall not have the quality attributes normally expected by the consumers and after this date, the commodity should not be regarded as marketable.]
- (e) the retail sale price of the package ¹[shall clearly indicate that it is the maximum retail price inclusive of all taxes and the price in rupees and paise be rounded off to the nearest rupee or 50 paise;

Illustrations.—for declaration or retail sale price:

- (a) Maximum or Max. retail price Rs. or ₹ xx.xx (inclusive of all taxes), or
- (b) Maximum or Max. retail price Rs. or ₹ xx.xx inclusive of all taxes, or
- (c) MRP Rs. or ₹ xx.xx incl. of all taxes, or
- (d) MRP Rs. or ₹ xx.xx (incl. of all taxes):]

Provided that for packages containing alcoholic beverages or spirituous liquor, the State Excise Laws and the rules made thereunder shall be applicable within the State in which it is manufactured and where the state excise laws and rules made thereunder do not provide for declaration of retail sale price, the provisions of these rules shall apply:

²[Provided further that if the retail sale price of any essential commodity is fixed and notified by the Competent Authority under the Essential Commodities Act, 1955 the same shall apply.]

- (f) Where the sizes of the commodity contained in the package are relevant, the dimensions of the commodity contained in the package and if the dimensions of the different pieces are different, the dimensions of each such different piece shall be mentioned.
- (g) such other matter as are specified in these rules:

Provided that—

- (A) no declaration as to the month and year in which the commodity is manufactured or pre-packed shall be required to be made on—

- (i) any package containing *bidi* or incense sticks;
- (ii) any domestic liquefied petroleum gas cylinder of 14.2 kg or 5 kg, bottled and marketed by a public sector undertaking;

- (B) where any packaging material bearing thereon the month in which any commodity was expected to have been pre-packed is not exhausted during that month, such packaging material may be used for pre-packing the concerned commodity

1. Ins. by G.S.R. 629(E), dated 23rd June, 2017 (w.e.f. 1-1-2018).

2. Ins. by G.S.R. 858(E), dated 7th September, 2016 (w.e.f. 7-9-2016).

produced or manufactured during the next succeeding month and not there after, but the Central Government may, if it is satisfied that such packaging material could not be exhausted during the period aforesaid by reason of any circumstance beyond the control of the manufacturer or packer as the case may be extend the time during which such packaging material may be used, and, where any such packaging material is exhausted before the expiry of the month indicated thereon, the packaging material intended to be used during the next succeeding month may be used for pre-packing the concerned commodity:

Provided that the said provision shall not apply to the packages containing food products, where the 'Best before or Use before' period is ninety days or less from the date of manufacture or packing.'

- (C) no declaration as to the retail sale price shall be required to be made on:
- (i) any package containing *bidi*;
 - (ii) any domestic liquefied petroleum gas cylinder of which the price is covered under the Administrative Price Mechanism of the Government.

Explanation I.—The month and the year in which commodity is pre-packed may be expressed either in words, or by numerals indicating the month and the year, or by both.

¹[(2) Every package shall bear the name, address, telephone number, e-mail address of the person who can be or the office which can be contacted, in case of consumer complaints.]

(3) It shall not be permissible to affix individual stickers on the package for altering or making declaration required under these rules:

Provided that for reducing the Maximum Retail Price (MRP), a sticker with the revised lower MRP (inclusive of all taxes) may be affixed and the same shall not cover the MRP declaration made by the manufacturer or the packer, as the case may be, on the label of the package.

(4) It shall be permissible to use stickers for making any declaration other than the declaration required to be made under these rules.

²[(4A) Nothing in this rule shall preclude a manufacturer or packer or importer to declare the following on the package, in addition to the mandatory declarations—

- (a) Barcode or GTIN or QR Code:

1. Subs. by G.S.R. 385(E), dated 14th May, 2015, for sub-rule (2) (w.e.f. 1-1-2016). Sub-rule (2), before substitution, stood as under:

"(2) Every package shall bear the name, address, telephone number, E-mail address, if available, of the person who can be or the office which can be, contacted, in case of consumer complaints."

2. Ins. by G.S.R. 629(E), dated 23rd June, 2017 (w.e.f. 1-1-2018).

- (b) 'e-code' for net quantity assurance of the commodity and other required declarations, after obtaining the same in the manner as specified by the Central Government;
- (c) logos of Government schemes, such as Swatch Bharat Mission, where such use is authorised by the Central Government.]

(5) Where a commodity consists of a number of components and these components are packed in two or more units, for sale as a single commodity, the declaration required to be made under sub-rule (1) shall appear on the main package and such package shall also carry information about the other accompanying packages or such declaration may be given on individual packages and intimation to that effect may be given on the main package and if the components are sold as spare parts, all declarations shall be given on each package.

¹[(6) Any packaging material or wrapper which could not be exhausted by the manufacturer or packer may be used for packing of the material ²[upto 31st March, 2012] or till such date the packaging material of wrapper is exhausted, whichever is earlier, after making the corrections required under these rules by way of stamping or putting sticker or online printing, as the case may be.]

³[(7) Every package containing the genetically modified food shall bear at the top of its principal display panel the words "GM".]

⁴[(8) Every package containing soap, shampoos, tooth pastes and other cosmetics and toiletries shall bear at the top of its principal display panel a red or as the case may be, brown dot for products of non-vegetarian origin and a green dot products of vegetarian origin.]

⁵[(9) Without prejudice to the provisions contained in this rule, it shall be permissible to affix a label on imported packages for making the declarations required under these rules.]

⁶[(10) An E-Commerce entity shall ensure that the mandatory declaration as specified in sub-rule (1), except the month and year in which the commodity is manufactured or packed, shall be displayed on the digital and electronic network used for e-commerce transactions:

Provided that in case of market place model of e-commerce, responsibility of the correctness of declarations shall lie with the manufacturer or seller or dealer or importer if,—

- (a) the function of the e-commerce entity is limited to providing access to a communication system over which information made available by the manufacturer or seller or dealer or importer is transmitted or temporarily stored or hosted; or

1. Ins. by G.S.R. 318(E), dated 13th April, 2011 (w.e.f. 13-4-2011).

2. Subs. by G.S.R. 734(E), dated 30th September, 2011, for "upto 30th September, 2011" (w.e.f. 30-9-2011).

3. Ins. by G.S.R. 427(E), dated 5th June, 2012 (w.e.f. 1-1-2013).

4. Ins. by G.S.R. 137, dated 16th June, 2014 (w.e.f. 1-7-2014).

5. Ins. by G.S.R. 385(E), dated 14th May, 2015 (w.e.f. 14-5-2015).

6. Ins. by G.S.R. 629(E), dated 23rd June, 2017 (w.e.f. 1-1-2018).

- (b) the entity does not—
 - (i) initiate the transmission;
 - (ii) select the receiver of the transmission; and
 - (iii) select or modify the information contained in the transmission;
- (c) the entity observes due diligence while discharging its duty as an intermediary under the Information Technology Act, 2000 and also observes such other guidelines as the Central Government may prescribe in this behalf:

Provided further that there shall not be any protection to the market place e-commerce entity if,—

- (a) the entity has conspired or abetted or aided or induced, whether by threats or promise of otherwise in the commission of the unlawful act;
- (b) upon receiving actual knowledge, or on being notified by the appropriate Government or its agency that any information, data or communication link residing in or connected to a computer resource controlled by the entity is being used to commit the unlawful act, the entity fails to expeditiously remove or disable access to that material on that resource without vitiating the evidence in any manner.

Explanation.—For the removal of doubts it is hereby clarified that the provision of this sub-rule shall not provide exemption from the declarations required to be made under these rules on pre-packaged commodities delivered to the consumers.]

7. Principal display panel its area, size and letter etc.—(1) In the case of a package having a capacity of ¹[ten cubic centimeters or less], the principal display panel may be a card or tape affixed firmly to the package and shall bear the required information.

²[(2) The height of any numeral and letter in the declaration required under these rules shall be as per Table-1.]

³[(3) The width of the letter or numeral shall not be less than one-third of its height, except in the case of numeral "1" and letters (i), (l) and (I).]

1. Subs. by G.S.R. 385(E), dated 14th May, 2015, for "five cubic centimeters or less" (w.e.f. 14-5-2015).

2. Subs. by G.S.R. 629(E), dated 23rd June, 2017, for sub-rule (2) (w.e.f. 1-1-2018). Sub-rule (2), before substitution, stood as under:

"(2) The height of any numeral in the declaration required under these rules, on the principal display panel shall not be less than,—

- (i) as shown in Table-I, if the net quantity is declared in terms of weight or volume;
- (ii) as shown in Table-II, if the net quantity is declared in terms of length, area or number."

3. Subs. by G.S.R. 629(E), dated 23rd June, 2017, for sub-rule (3) (w.e.f. 1-1-2018). Sub-rule (3), before substitution, stood as under:

"(3) The height of letters in the declaration shall not be less than 1 mm height and when blown, formed, molded, embossed or perforated, the height of letters shall not be less than 2 mm:

Provided that the width of the letter or numeral shall not be less than one-third of its height, except in the case of numeral '1' and letters (i), (I) and (l);".

¹[TABLE-I

Serial Number	Area of Principal display panel in square centimeters (A)	Minimum height of numerals and letters in millimeters	Minimum height of numerals and letters when blown, formed or molded on surface of container in millimeters
	(1)	(2)	(3)
1.	$A \leq 50$	1.0	¹ [2.0]
2.	$50 < A \leq 100$	1.5	3.0
3.	$100 < A \leq 500$	2.5	4.0
4.	$500 < A \leq 2500$	4.0	6.0
5.	$2500 < A$	6.0	6.0]

TABLE-II

²[***]

1. Subs. by G.S.R. 629(E), dated 23rd June, 2017, for Table-I (w.e.f. 1-1-2018). Table-I, before substitution, stood as under:

"TABLE I

Minimum Height of Numeral

Serial Number	Net quantity in weight/volume	Minimum height in mm	
		Normal case	When blown, formed, molded, embossed or perforated on container
1.	Upto 200g/ml	1	2
2.	Above 200g/ml and upto 500g/ml	2	4
3.	Above 500g/ml	4	6"

2. Table II Omitted by G.S.R. 629(E), dated 23rd June, 2017 (w.e.f. 1-1-2018). Table II, before omission, stood as under:

"TABLE II

Minimum Height of Numeral

Serial Number	Net quantity in length, area or number area of principal display panel	Minimum height in mm	
		Normal case	When blown, formed, molded, embossed or perforated on container
1.	Upto 100 cm ²	1	2
2.	Above 100 cm ² and upto 500 cm ²	2	4
3.	Above 500 cm ² and upto 2500 cm ²	4	6
4.	Above 2500 cm ²	6	6"

1. Subs. by Corrigendum G.S.R. 1373(E), dated 7th November, 2017, for "1.5".

¹[(4) The area not including the top, bottom, flange at top and bottom of cans, and shoulders and neck of bottle and jars shall be determined in the following manner, namely:—

- (a) in the case of a rectangular package, where one entire side can properly be considered to be the principal display panel side, the product of the height multiplied by the width of that side;
- (b) in case of a cylindrical or nearly cylindrical package, 40 per cent. of the product of the height of the package multiplied by the circumference;
- (c) in case of any other shaped package, 40 per cent. of the total surface of the package, or an area considered to be a principal display panel of the package.

(5) Except size of the numbers and letters for declaring net weight, retail sale price, date of expiry or best before or use by date (wherever and as applicable) and consumer care details, the provisions under sub-rules (1) to (4) shall not apply to a package if the information to be specified on such package under this rule is also required to be given by or under any other law for the time being in force.]

8. Declaration where to appear.—(1) Every declaration required to be made under these rules shall appear on the principal display panel:

Provided that the area surrounding the quantity declaration shall be free from printed information.

- (a) above and below by a space equal to at least the height of the numeral in the declaration, and
- (b) to the left and right by a space at least twice the height of numeral in the declaration.

(2) For soft drink, ready to serve fruit beverages or the like, the bottle which is returnable by the consumer for being refilled, the retail sale price may be indicated either on the crown cap, or on the bottle or on both and if the retail sale price is indicated on the crown cap or the bottle, it is sufficient to indicate the retail sale price in the form of 'MRP Rs..../₹.....'.

1. Subs. by G.S.R. 629(E), dated 23rd June, 2017, for sub-rule (4) and (5) (w.e.f. 1-1-2018). Earlier sub-rule (5) was amended by G.S.R. 385(E), dated 14th May, 2015 (w.e.f. 1-1-2016). Sub-rule (4) and (5), before substituted, stood as under:

"(4) The provisions under sub-rules (1) to (3) shall not apply to a package if the information to be specified on such package under this rule is also required to be given by or under any other law for the time being in force.

(5) the area not including the top, bottom, flange at top and bottom of cans, and shoulders and neck of bottle and jars shall be determined as follows, namely:—

- (a) in the case of a rectangular package, where one entire side can properly be considered to be the principal display panel side, the product of the height multiplied by the width of that side.
- (b) in case of a cylindrical or nearly cylindrical package, 40 per cent of the product of the height of the package multiplied by the circumference.
- (c) in case of any other shaped package, 40 per cent of the total surface of the package, or an area considered to be a principal display panel of the package."

9. Manner in which declaration shall be made.—(1) Every declaration which is required to be made on a package under these rules shall be—

- (a) legible and prominent;
- (b) numerals of the retail sale price and net quantity declaration shall be printed, painted or inscribed on the package in a colour that contrasts conspicuously with the background of the label;

Provided that,—

- (a) where any label information is blown, formed or moulded on a glass or plastic surface such information need not be required to be presented in a contrasting colour;
- (b) where any declaration on a package is printed either in the form of handwriting or hand-script, such declaration shall be clear, unambiguous and legible.

(2) No declaration shall be made so as to require it to be read through any liquid commodity contained in the package.

(3) Where a package is provided with an outside container or wrapper such container or wrapper shall also contain all the declarations which are required to appear on the package except where such container or wrapper itself is transparent and the declarations on the package itself are easily readable through such outside container or wrapper:

¹[Provided that no such declarations on the inner package is required, if the outer package contains all declarations required under these rules.]

²[***]

(4) The particulars of the declarations required to be specified under this rule on a package shall either be in Hindi in Devnagri script or in English:

Provided that nothing contained in this sub-rule shall prevent the use of any other language in addition to Hindi or English language.

10. Declaration of name and address of the manufacturer, etc.—(1) Subject to the provisions of rule 6, every package kept, offered or exposed for sale or sold shall bear conspicuously on it, the name and complete address of the manufacturer, or where the manufacturer is not the packer, the name and address of the manufacturer and the packer and in case of imported packages, the name and address of the importer:

Provided that for packages of capacity ³[10 cubic cm or less], it shall be a sufficient compliance of this sub-rule, if a mark or inscription which would enable the consumer to identify the manufacturer or packer or the importer, as the case may be, is made on the package:

1. Ins. by G.S.R. 629(E), dated 23rd June, 2017 (w.e.f. 1-1-2018).

2. Proviso omitted by G.S.R. 385(E), dated 14th May, 2015 (w.e.f. 14-5-2015). Proviso, before omission, stood as under:

"Provided that no such declarations on the inner package as required under the said rules is required if the inner package does not contain any declaration on its outer cover."

3. Subs. by G.S.R. 629(E), dated 23rd June, 2017, for "5 cubic cm or less" (w.e.f. 1-1-2018).

Provided further that where any commodity manufactured outside India is packed in India, the package shall also contain on the principal display panel the name and complete address of the packer or the importer in India.

¹[Explanation I.]—In this sub-rule, 'complete address' means, the postal address ²[at which the company or firm is registered], and, in any other case, the name of the street, number (if any) assigned to the premises of the manufacturer or packer and either the name of the city and State where the business is carried on by the manufacturer or packer or the Postal Index Number [PIN] Code so that a consumer can identify and locate the manufacturer or packer or importer, as the case may be.

³[Explanation. II—In this sub-rule, 'complete address' means, the postal address at which the factory is situated or company or firm is registered, and, in any other case, the name of the street, number (if any) assigned to the premises of the manufacturer or packer or importer and the name of the city and State where the business is carried on by the manufacturer or packer or importer and the Postal Index Number [PIN] Code so that a consumer can identify and locate the manufacturer or packer or importer, as the case may be.]

(2) The name of the manufacturer or packer or importer shall be the actual corporate name, or if not incorporated, the name under which the business is conducted by such manufacturer or packer or importer in India.

11. General provisions relating to declaration of quantity.—(1) In declaring the net quantity of the commodity contained in a package, the weight of wrappers and materials other than the commodity shall be excluded.

(2) Where a commodity in a package is not likely to undergo any variation in weight or measure, on account of the environmental conditions, the quantity declared on the package shall correspond to the net quantity which will be received by the consumer, and the declaration of quantity of such package shall not be qualified by the words 'when packed' or the like.

(3) Save as otherwise provided in sub-rule (4), where a commodity in package is likely to undergo variations in weight or measure on account of environmental conditions and such variation is negligible, the declaration of quantity in relation to such package shall be made after taking into account such variation so that the consumer may receive not less than the net quantity of the commodity as declared on the package, and the declaration of quantity on such package shall not also be qualified by the words 'when packed' or the like.

(4) The declaration of quantity in relation to commodities which are likely to undergo significant variations in weight or measures on account of environmental or other conditions may be qualified by the words "when packed", as specified in the Third Schedule.

12. Manner in which declaration of quantity shall be.—(1) The declaration of quantity shall be expressed in terms of such unit of weight, measure or number

1. *Explanation* re-numbered as *Explanation I* by G.S.R. 629(E), dated 23rd June, 2017 (w.e.f. 1-1-2018).

2. Subs. by G.S.R. 385(E), dated 14th May, 2015, for "at which the factory is situated" (w.e.f. 1-1-2016).

3. Ins. by G.S.R. 629(E), dated 23rd June, 2017 (w.e.f. 1-1-2018).

or a combination of weight, measure or number as would give an accurate and adequate information to the consumer with regard to the quantity of the commodity contained in the package.

(2) Except in the cases of commodities specified in the Fourth Schedule, the declaration of quantity shall be in terms of the unit of—

- (a) mass, if the commodity is solid, semi-solid, viscous or a mixture of solid and liquid;
- (b) length, if the commodity is sold by linear measure;
- (c) area, if the commodity is sold by area measure;
- (d) volume, if the commodity is liquid or is sold by cubic measure; or
- (e) number, if the commodity is sold by number:

(3) Where the declaration of quantity has been made in terms of mass, the manufacturer or importer or, as the case may be, the packer may, at his option make an additional declaration on the package as to the number of commodities contained in the package.

(4) Where the declaration of quantity by weight or measure or number is not sufficient to give to the consumer full information with regard to the dimensions or number of commodity contained in the package, such declaration shall be accompanied by a declaration of the dimensions or number, or both, where necessary, of the commodity contained in the package.

(5) Where it is necessary to communicate to the consumer any additional information about the commodity contained in a package, such information shall also appear on the same panel in which the other information, as required by these rules, have been indicated.

¹[(6) The declaration of quantity under these rules shall not contain any word or expression, of any sort whatsoever, which tends to create or is likely to create an exaggerated, misleading or inadequate expression as to the quantity of the commodity contained in the package.]

(7) For packages having capacity ²[ten cubic centimeters or less], the declaration of quantity shall be made on a tag, card, tape, or any other similar device affixed to the container in such manner that it cannot be removed without opening the container and every such tag, card, tape or other device shall contain mark or inscription which will enable the consumer to identify the manufacturer or packer, as the case may be.

13. Statement of units of weight, measure or number.—(1) The units of weight or measure or number shall be specified in accordance with the units specified in sub-rule (2) or sub-rule (3), as the case may be.

1. Subs. by G.S.R. 784(E), dated 24th October, 2011, read with corrigendum G.S.R. 832(E), dated 23rd November, 2011, for sub-rule (6) (w.e.f. 1-7-2012). Sub-rule (6), before substitution, stood as under:

“(6) The declaration of quantity shall not contain any word or expression which tends to create an exaggerated, misleading or inadequate impression as to the quantity of the commodity contained in the package, for example, words or expressions like—‘minimum’, ‘not less than’, ‘average’, ‘about’, ‘approximately’ or other words of a similar nature.”.

2. Subs. by G.S.R. 385(E), dated 14th May, 2015, for “5 cubic cm or less” (w.e.f. 14-5-2015).

- (2) When expressing a quantity less than,—
- (a) one kilogram, the unit of weight shall be the gram;
 - (b) one metre, the unit of length shall be the centimetre;
 - (c) one square metre, the unit of area shall be the square decimetre;
 - (d) one cubic metre, the unit of volume shall be one cubic centimetre;
 - (e) one cubic decimetre, the unit of volume shall be the cubic centimetre;
 - (f) one litre, the unit of volume shall be the millilitre.
- (3) When expressing a quantity of equal to or more than—
- (a) one kilogram, the unit of weight shall be the kilogram and any fraction of a kilogram shall be expressed in terms of decimal of sub-multiples of kilogram or in terms of grams;
 - (b) one metre, the unit of length shall be the metre and any fraction of a metre shall be expressed in terms of decimal of sub-multiples of the metre or in terms of centimetre;
 - (c) square metre, the unit of the area shall be the square metre and any fraction of a square metre shall be expressed in terms of decimal of sub-multiple of the square metre;
 - (d) cubic metre, the unit of volume shall be the cubic metre and any fraction of a cubic metre shall be expressed in terms of decimal sub-multiple of the cubic metre;
 - (e) one litre, the unit of volume shall be the litre and any fraction of a litre shall be expressed in terms of decimal of sub-multiple of the litre:

Provided that where the quantity to be expressed is equal to one kilogram, one metre, one square metre, one cubic decimetre, one cubic metre or one litre, as the case may be, such quantity may be expressed at the option of the manufacturer or the packer or the importer, as the case may be, in terms of gram, centimetre, square decimetre, cubic centimetre, cubic decimetre or millilitre as the case may be.

(4) No number called the dozen, score, gross, great gross or the like shall be specified or indicated on any package.

(5) Symbol of units:—(i) No system of units other than the International System of Units shall be used in furnishing the net quantity of the package;

(ii) For items sold by number the symbol should be N or U.

¹[*Explanation.*—For the purposes of this sub-rule, it is clarified that for indicating the unit for litre, the letter 'L' may be adopted to avoid confusion with the letter 'I' and figure '1']

¹[(6) where there are number of packages of the same commodity in a prepackage, the number of packages and the quantity of each package shall be indicated as a supplementary quantity declaration in the package.

Explanation.—For the purposes of this sub-rule, where the net quantity of a package is one hundred grams, the number of packages multiplied by the net quantity of each package shall be separately indicated in numbers multiplied by its individual weight (*i.e.* 10 number $\times$ 10 grams).]

14. Declarations with regard to dimensions of certain commodities.—Where a package contains commodities like bed-sheets, hemmed fabric materials, dhoties, sarees, napkins, pillow-covers, towels, table cloths or similar other commodities, the number and the dimensions of finished size of such commodities shall also be declared on the package or on the label affixed thereto:

Provided that where the package contains more than one piece of different dimensions, the package shall also contain a declaration as to the dimensions and the retail sale price of each such piece:

Provided further that the dimensions of the commodities and the retail sale price thereof shall also be marked on each individual piece.

15. Declaration with regard to dimensions and weight to be made on packages in certain cases.—Where the dimensions and weight, or combination thereof, of a commodity has or have a relationship to the price of that commodity, the declaration of quantity on the package containing such commodity, shall also include a declaration as to such dimensions, weight or combination.

16. Declarations to be made with regard to the number of usable sheets to be stated.—In the case of a package containing sheets like aluminum foil, facial tissues, waxed paper, toilet paper or any other type of sheet, the declaration of quantity on the package shall also include a statement as to the number of usable sheets contained in the package and the dimensions of each such sheet.

17. Declarations with regard to the dimensions of container type commodities.—The commodities shall be expressed as bags, boxes, cups, pans or the like designed and sold in retail trade for being used as containers for other materials or objects and shall be labeled with the declaration of quantity as follows.—

- (i) for bag-type commodities, the number of bags which the package may contain, followed by linear dimensions of the bags, whether packaged in a perforated roll or otherwise;
- (ii) for square, oblong, rectangular or similarly shaped containers, the number of containers which the package may contain, followed by length, width, and if required, depth of the container;
- (iii) for circular or generally round-shaped containers, not being cups or the like the number of commodities contained therein followed by diameter and, if necessary, depth of the container;
- (iv) When the use of a container is related by label references, the standard weight or measure, to the capability of the container to hold a specific quantity of commodity or a class of commodities such references shall be included in the declaration of quantity.

18. Provisions relating to wholesale dealer and retail dealers.—(1) No wholesale dealer or retail dealer or importer shall sell, distribute, deliver, display or store for sale any commodity in the packaged form unless the package complies with in all respects, the provisions of the Act and these rules.

¹[(IA) The wholesale dealer shall be allowed to sell the pre-packaged commodities directly to the industrial and institutional consumers.]

(2) No retail dealer or other person including manufacturer, packer, importer and wholesale dealer shall make any sale of any commodity in packed form at a price exceeding the retail sale price thereof,

¹[(2A) Unless otherwise specifically provided under any other law, no manufacturer or packer or importer shall declare different maximum retail prices on an identical pre-packaged commodity by adopting restrictive trade practices or unfair trade practices as defined under ²[clause (nnn) and clause (r), respectively] of sub-section (1) of section 2 of the Consumer Protection Act, 1986 (68 of 1986).]

(3) Where, after any commodity has been pre-packed for sale, any tax payable in relation to such commodity is revised, the retail dealer or any other person shall not make any retail sale of such commodity at a price exceeding the revised retail sale price, communicated to him by the manufacturer, or where the manufacturer is not the packer, the packer, and it shall be, the duty of the manufacturer or packer as the case may be, to indicate by not less than two advertisements in one or more newspapers and also by circulation of notices to the dealers and to the Director in the Central Government and Controllers of Legal Metrology in the States and Union Territories, the revised prices of such packages but the difference between the price marked on the package and the revised price shall not, in any case, be higher than the extent of increase in the tax or in the case of imposition of fresh tax higher than the fresh tax so imposed:

Provided that publication in any newspaper, of such revised price shall not be necessary where such revision is due to any increase in, or imposition or, any tax payable under any law made by the State Legislatures:

Provided further that the retail dealer or other person, shall not charge such revised prices in relation to any packages except those packages which bear marking indicating that they were pre-packed in the month in which such tax has been revised or fresh tax has been imposed or in the month immediately following the month aforesaid;

Provided also that where the revised prices are lower than the price marked on the package, the retail dealer or other person shall not charge any price in excess of the revised price, irrespective of the month in which the commodity was pre-packed.

(4) Nothing in sub-rule (3) shall apply to a package which is not required, under these rules to indicate the month and the year in which it was pre-packed.

(5) No wholesale dealer or retail dealer or other person shall obliterate, smudge or alter the retail sale price, indicated by the manufacturer or the packer or the importer, as the case may be, on the package or on the label affixed thereto.

(6) The manufacturer or packer or the importer shall not alter the price on the wrapper once printed and used for packing.

(7) All retailers who are covered under the Value Added Tax (VAT) or Turn Over Tax (TOT) and dealing in packaged commodities whose net content

1. Ins. by G.S.R. 629(E), dated 23rd June, 2017 (w.e.f. 1-1-2018).

2. Subs. by Corrigendum G.S.R. 1373(E), dated 7th November, 2017, for "clause (c)".

declaration is by weight or volume or a combination thereof shall maintain an electronic weighing machine of at least accuracy class III, with smallest division of at least 1g, with facility to issue a printed receipt indicating among other things, the gross quantity, price and the like at a prominent place in their retail premises, free of cost, for the benefit of consumers and the consumers may check the weight of their packaged commodities purchased from the shop on such machine.

¹[(8) (1) All the marketing companies, manufacturers, packers, importers or distributors of Liquefied Petroleum Gas cylinder shall maintain a check weigher or non-automatic weighing instrument, digital or analogue, of Accuracy class-III (Max. 50 kg, e=10g) to check the weight of the Liquefied Petroleum Gas cylinder.

(2) The marketing companies, manufacturers, packers, importers or distributors referred to in sub-rule (1), shall provide to the delivery man to measure or weigh the correct quantity of the Liquefied Petroleum Gas cylinder.]

19. Inspection of quantity and error in packages at the premises of the manufacturer or packer.—(1) With a view to ascertaining whether any package or lot of packages complies with provisions of these rules in all respects, the Director, Controller or any Legal Metrology Officer empowered to inspect under section 15 of the Act (hereafter referred to in these rules as the “authorized person”) may examine the packages and carry out the tests at the premises of the manufacturer or where the manufacturer is not the packer, of the packer and when he carries out such examination or tests, he shall draw samples from such lot of packages, in such manner and in such number as are specified in the Fifth Schedule and the tests aforesaid shall be carried out in accordance with the method specified in the Sixth Schedule.

(2) The Director, Controller or any Legal Metrology Officer shall enter in the Form set out in the Seventh Schedule, the detailed results of the tests carried out by him under sub-rule (1) and shall obtain, on the said Form, the signature of the manufacturer or, as the case may be, of the packer, or his authorized agent, or, in the absence of both, or on their refusal to affix such signature, the signature of a competent witness and copy of the data-sheet containing the result shall be given to the manufacturer or packer, as the case may be.

(3) On the completion of the examination and tests carried out under sub-rule (1), the Director, Controller or any Legal Metrology Officer shall make a report indicating therein his findings with regard to the declarations required to be made under these rules and as to the net quantity actually contained in the sample packages and the extent of error, if any, noticed by him and furnish a copy of such report to the manufacturer or the packer, as the case may be.

(4) If it appears from the report referred to in sub-rule (3) that—

- (a) ²[the corrected average] of the net quantity contained in the packages drawn as samples is lesser than the quantity declared on the packages or on the labels affixed thereto; or

1. Ins. by G.S.R. 359(E), dated 6th June, 2013 (w.e.f. 1-7-2013).

2. Subs. by G.S.R. 629(E), dated 23rd June, 2017, for “the statistical average” (w.e.f. 1-1-2018).

- ¹[(b) the number of packages that show an error in deficiency exceeding the maximum permissible error is greater than that shown in column 4 of Table under Fifth Schedule; or
- (c) any such package shows an error in deficiency exceeding twice the maximum permissible error;
- (d) the Director, Controller or the Legal Metrology Officer shall require the manufacturer or packer to make a cent per cent check of the packages contained in the lot and authorise sale, distribution or delivery of only such packages with error in deficiency in the net quantity less than the maximum permissible error and the remaining packages shall be allowed to be sold distributed or delivered by the manufacturer or packer after it has been repacked or relabeled, as the case may be, so as to comply with the provisions of the Act and these Rules.]

²[***]

³[(6) A lot of packages shall be approved for sale if as a result of the test carried out under this rule, it is found that—

1. Subs. by G.S.R. 629(E), dated 23rd June, 2017, for clause (b) (w.e.f. 1-1-2018). Clause (b), before substitution, stood as under:

“(b) any such package shows an error in deficiency greater than the maximum permissible error, the Director, Controller or any Legal Metrology Officer shall, if for good and sufficient reason, requested by the manufacturer or packer or his authorized agent, so to do, take out as soon as may be practicable, fresh samples and carry out fresh tests in accordance with the provisions of these rules and where fresh tests are made, the Director, Controller or any Legal Metrology Officer, as the case may be, shall collect a fee of two thousand five hundred rupees from the manufacturer or packer for carrying out the fresh tests:

Provided that where fresh tests are carried out, no package contained in the lot, which was previously tested under this rule, shall be sold or distributed by the manufacturer or packer, as the case may be, unless the provisions of the sub-rule (5) or as the case may be, sub-rule (6), are complied with.”.

2. Sub-rule (5) omitted by G.S.R. 629(E), dated 23rd June, 2017, (w.e.f. 1-1-2018). Sub-rule (5), before omission, stood as under:

“(5)(a) where, as a result of any test carried out under this rule, it is found that any package contained in the lot does not conform to all or any of the provisions of the Act or of these rules, the manufacturer or the packer shall make a cent per cent check of the packages contained in the lot and pick out from the lot the packages which conform to all the provisions of the Act and of these rules.

(b) When the Director, Controller or any Legal Metrology Officer is satisfied that the packages picked out by the manufacturer or packer conforms to all the provisions of the Act and of these rules, he shall authorize the sale, distribution or delivery of such packages.

(c) Where, as a result of such cent per cent check by the manufacturer or packer, any package is found to be not conforming to all or any or of the provisions of the Act or of these rules, such package shall not be sold, distributed or delivered until it has been re-packed, re-processed or re-labelled, as the case may be, in accordance with the provisions of the Act and of these rules.”.

3. Subs. by G.S.R. 629(E), dated 23rd June, 2017, for sub-rule (6) (w.e.f. 1-1-2018). Sub-rule (6), before substitution, stood as under:

“(6) A lot of packages shall be approved for sale if, and only if, as a result of the tests carried out under this rule, it is found that—

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- (a) the corrected average net quantity of the sample packages is equal to or more than the declared net quantity;
- (b) the number of packages that show an error in deficiency exceeding the maximum permissible error is not more than that shown in column 4 of the Table under Fifth Schedule;
- (c) no package shows an error in deficiency exceeding twice the maximum permissible error;
- (d) every package bears thereon or on a label affixed thereto the declarations required to be made under these rules.]

¹[(7) The requirement of mandatory declarations on packages shall be ensured* at the factory level and at the depot of the factory.]

²[(8) For non-compliance of the provisions of this rule, action may be taken after seizing five representative samples of the packages as evidence and the rest of the packages may be released only after compliance is completed by the manufacturer or the packer, as the case may be.]

³[**20. Action to be taken on completion of inspection of packages at the premises of the manufacturers or the packer.**—(1) If it appears from the report referred to in sub-rule (3) of rule 19 that,—

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- (a) the statistical average of the net quantity contained in the sample packages is equal to, or more than, the quantity declared on the package or on the label affixed thereto.
- (b) the extent of error in deficiency in none of such sample packages exceeds the maximum permissible error.
- (c) each such package bears thereon or on a label affixed thereto the declaration required to be made under these rules."

1. Subs. by G.S.R. 784(E), dated 24th October, 2011, read with corrigendum G.S.R. 832(E), dated 23rd November, 2011, for sub-rule (7) (w.e.f. 1-7-2012). Sub-rule (7), before substitution, stood as under:

"(7) The requirement of mandatory declarations on the packages shall be ensured either at the factory level or at the depot of the factory."

* Subs. by corrigendum G.S.R. 832(E), dated 23rd November, 2011, for "ensured either".

2. Subs. by G.S.R. 784(E), dated 24th October, 2011, read with corrigendum G.S.R. 832(E), dated 23rd November, 2011, for sub-rule (8) (w.e.f. 1-7-2012). Sub-rule (8), before substitution, stood as under:

"(8) For non-compliance of the provisions of this rule, action may be taken after seizing five representative samples of the packages as evidence and the rest of the packages may be released once compliance is ensured by the manufacturer or the packer, as the case may be."

3. Subs. by G.S.R. 629(E), dated 23rd June, 2017, for rule 20 (w.e.f. 1-1-2018). Rule 20, before substitution, stood as under:

20. **Action to be taken on completion of inspection of packages at the premises of the manufacturer or the packer.**—(1) If it appears from the report referred to in sub-rule (3) of rule 19 that,—

- (a) the statistical average of the net quantity contained in the packages drawn as samples under that rule is lesser than the quantity declared on the packages or on the labels affixed thereto, or any such package shows an error in deficiency greater than the maximum permissible error, or
- (b) any such package does not bear thereon or on label affixed thereto the declarations to be made under these rules, the Director, Controller or any Legal Metrology Officer shall take action as given below, namely:—

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- (a) the corrected average net quantity contained in the packages drawn as samples is lesser than the quantity declared on the package or the label affixed thereto; or
- (b) any such packages showing an error in deficiency exceeding the maximum permissible error is greater than the number specified in column 4 of the Table in the Fifth schedule; or
- (c) any package has error in deficiency exceeding twice the maximum permissible error; or
- (d) any such package does not bear thereon or on label affixed thereto the declarations to be made under these Rules;

the Director, Controller, or the Legal Metrology Officer shall take following action, namely:—

- (i) seize the packages drawn by him as samples and take adequate steps for the safe custody of the seized packages until they are produced in the appropriate court as evidence;
- (ii) based on the evidence initiate action for violations as per the provisions of the Act and these rules.

(2) The disposal of the seized packages shall be done in accordance with the provisions of the Code of Criminal Procedure, 1973 (2 of 1974).]

21. Inspection of quantity and error in packages at the premises of the wholesale dealer or retail dealer.—(1) Ordinarily, any test in relation to the net quantity contained in a package shall not be carried out at the premises of the retail dealer or the wholesale dealer, unless—

- (i) a complaint is received by the Director or the Controller or any Legal Metrology Officer to the effect that the package sold or delivered to the complainant does not contain the quantity declared on such package or on the label affixed thereto;
- (ii) the Director or the Controller or any Legal Metrology Officer has reason to suspect that any package has been tempered with or that there has been any pilferage or leakage of the commodity contained in the packages;
- (iii) the Director or the Controller or any Legal Metrology Officer has reason to suspect that any package, or any label affixed thereto, does not bear thereon all or any of the declarations which are required to be made under these rules.

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- (i) seize the packages drawn by him as samples and shall take adequate steps for the safe custody of the seized packages until they are produced in the appropriate court as evidence;
- (ii) based on the evidence initiate action for violations of the provisions of the Act and these rules:

Provided that no such action shall be taken if fresh tests are carried out under sub-rule (4) of rule 19, but if after such fresh tests any such error or omission as is referred to in this sub-rule is detected, the Director, Controller or any Legal Metrology Officer shall take appropriate action as specified in this sub-rule in accordance with the provisions of the Act against the manufacturer or, as the case may be, the packer.

(3) The disposal of the seized packages shall be made in accordance with the provisions of the Code of Criminal Procedure, 1973 (2 of 1974)."

(2) Where any test is carried out in pursuance of the provisions of sub-rule (1), the Director, Controller or any Legal Metrology Officer shall verify whether the quantity contained in the package corresponds to the quantity declared on such packages or any label affixed thereto and where quantity contained in package is less than the declared quantity, whether the deficiency is more than the maximum permissible error in relation to that commodity.

(3) Where the Director, Controller or any Legal Metrology Officer finds on a test carried out under this rule that the error in deficiency in any package kept or stored for sale, distribution or delivery at the premises of the retail or wholesale dealer is more than the maximum permissible error in relation to that commodity, he shall seize such package and take appropriate action against the retail dealer or the wholesale dealer, as the case may be, in accordance with the provisions of the Act:

Provided that where the package bears the legend 'when packed', no punitive action shall be taken against the retail dealer or wholesale dealer if the Director, Controller or any Legal Metrology Officer is satisfied after necessary test that the deficiency in the net quantity contained in package is due to environmental conditions.

(4) Where as a result of any test made under this rule, it is found that the net quantity contained in the package conforms to the declared quantity or where there is a deficiency, such deficiency is not more than the maximum permissible error, the retail dealer shall be at liberty to sell or deliver or distribute such commodity at the price determined on the basis of the quantity found on such tests.

(5) Where, as a result of any test made under this rule, it is found that any package, or any label affixed thereto, does not bear thereon all or any of the declarations required to be made under these rules, it shall be lawful for the Director, Controller or any Legal Metrology Officer to make such enquiries as to the source from which such package was received by the whole sale dealer or the retail dealer as the case may be, as he may think fit.

22. Establishment of maximum permissible error on package.—(1) The maximum permissible error in relation to the commodities shall be such as is indicated in the First Schedule.

(2) While establishing the maximum permissible error in relation to the net quantity of commodities contained in packages, due account shall be taken of the following causes which may lead to variation in quantity, namely:—

- (a) variations caused by unavoidable deviation in weighing, measuring or counting the contents of individual packages that may occur in good packaging practice;
- (b) variations caused by the ordinary and customary exposure to conditions, such as, climate, transport, storage or the like that normally occur in good distribution practice after the commodity is introduced in trade or commerce; and
- (c) variations due to the nature of packaging material or container.

(3) The Director or Controller or the Legal Metrology Officer shall determine, or cause to be determined, in relation to any commodity, the declaration in respect of the net quantity of which is permitted to be qualified by the words 'when packed'; the reasonable variations which may take place by reason of the environmental conditions.

23. Deceptive packages to be repacked or in default to be seized.—(1) If, on the determination of the quantity contained in the sample packages, the Director or Controller or the Legal Metrology Officer finds that the quantity contained in the package agrees with the declaration of the quantity made on the package or label thereon but the package is a deceptive package, he shall require the manufacturer or the packer, as the case may be, to re-pack and re-label such package and in the event of the omission or failure on the part of the manufacturer or the packer, as the case may be, to re-pack or re-label such deceptive package, in accordance with the standards established by or under these rules, seize them, take appropriate punitive action in accordance with the Act and take adequate steps for the safe custody of such packages until they are produced in a court as evidence.

Explanation.—For the purpose of this rule, 'deceptive package' means a package which is so designed as to deliberately given to the consumer an exaggerated or misleading impression as to the quantity of the commodity contained therein, except where bigger dimensions of the package can be justified by the manufacturer or the packer, as the case may be, on the ground that such dimensions are necessary for giving protection to the commodity contained in such package or for meeting the requirements of the machine used for filling such package.

(2) If the seized packages contain any commodity which is subject to speedy or natural decay, the Director or Controller or the Legal Metrology Officer shall dispose of the commodity in accordance with the rules made under the Act.

CHAPTER III

PROVISIONS APPLICABLE TO WHOLESALE PACKAGES

24. Declarations applicable to be made on every wholesale package.—Every wholesale package shall bear thereon a legible, definite, plain and conspicuous declaration as to—

- (a) The name and address of the manufacturer or importer or where the manufacturer or importer is not the packer, of the packer;
- (b) the identity of the commodity contained in the package; and
- (c) the total number of retail package contained in such wholesale package or the net quantity in terms of standard units of weights, measures or number of the commodity contained in wholesale package:

Provided that nothing in this rule shall apply in relation to a wholesale package if a declaration similar to the declarations specified in this rule, is required to be made on such wholesale packages by or under any other law for the time being in force.

CHAPTER IV EXPORT OF PACKAGED COMMODITIES

25. Restrictions on sale of export packages in India.—An export package shall not be sold in India unless the manufacturer or packer has re-packed or re-labeled the commodity in accordance with the provisions contained in Chapter II, and where any export package is sold in India without such re-packing or re-labeling, such package shall be liable to be seized in accordance with the provisions of the Act.

CHAPTER V EXEMPTIONS

26. Exemption in respect of certain packages.—Nothing contained in these rules shall apply to any package containing a commodity if—

- (a) the net weight or measure of the commodity is ten gram or ten millilitre or less, if sold by weight or measure:

¹[Provided that the provisions of this clause shall be applicable for tobacco and tobacco products.]

- (b) any package containing fast food items packed by restaurant or hotel and the like;

- ²[(c) it contains scheduled formulations and non-scheduled formulations covered under the Drugs (Price Control) Order, 2013 made under section 3 of the Essential Commodities Act, 1955 (10 of 1955):

Provided that no exemption shall be applicable to medical devices declared as drugs.]

³[***]

- ⁴[(e) any thread which is sold in coil to handloom weavers.]

CHAPTER VI REGISTRATION OF MANUFACTURERS, PACKERS AND IMPORTERS

27. Registration of manufacturers, packers and importers.—(1) Every individual, firm, Hindu undivided family, society, company or corporation who

1. Ins. by G.S.R. 385(E), dated 14th May, 2015 (w.e.f. 1-1-2016). Earlier proviso was omitted by G.S.R. 784(E), dated 24th October, 2011, read with corrigendum G.S.R. 832(E), dated 23rd November, 2011 (w.e.f. 1-7-2012). The proviso, before omission by G.S.R. 784(E), dated 24th October, 2011, stood as under:

"Provided that the declaration in respect of maximum retail price and net quantity shall be declared on packages containing 10 g to 20 g or 10 ml to 20 ml;"

2. Subs. by G.S.R. 629(E), dated 23rd June 2017, for clause (c) (w.e.f. 1-1-2018). Clause (c), before substitution, stood as under:

"(c) it contains scheduled formulations and non-scheduled formulations covered under the Drugs (Price Control) Order, 1995 made under section 3 of the Essential Commodities Act, 1955 (10 of 1955);"

3. Clause (d) omitted by G.S.R. 629(E), dated 23rd June, 2017 (w.e.f. 1-1-2018). Clause (d) before omission, stood as under:

"(d) agricultural form produces in packages of above 50 kg."

4. Ins. by G.S.R. 870(E), dated 4th December, 2014 (w.e.f. 4-12-2014).

or which pre-packs or imports any commodity for sale, distribution or delivery shall make an application, accompanied by a fee of rupees five hundred, to the Director or the Controller for the registration of his or its name and complete address; and every such application shall be made,—

- (i) in the case of an applicant pre-packing or importing any commodity on the date of commencement of these rules, within a period of ninety days from such commencement; or
- (ii) in the case of any applicant who or which commences pre-packing or importing of any commodity after the commencement of these rules, within ninety days from the date on which he or it commences such pre-packing.

(2) Every application referred in sub-rule (1) shall contain the following particulars, namely:—

- (a) the name of the applicant;
- (b) the complete address of the premises at which the pre-packing or import of one or more commodities is made by the applicant; and
- (c) the name of the commodity or commodities pre-packed or imported by the applicant.

Explanation.—In this sub-rule, 'complete address' has the meaning assigned to it in the explanation to sub-rule (1) of rule 10.

(3) For making any alteration in the registration certificate issued under sub-rule (1), a fee of rupees one hundred shall be paid by the concerned manufacturer or packer or importer to the Director or Controller.

(4) On receipt of the application made under sub-rule (1), the Director or Controller, who shall be the Registering Authority, shall—

- (a) if the application is not complete in all respects, return the same to the applicant within a period of seven working days from the date of receipt of the application;
- (b) if the application is complete in all respects, register the applicant and grant a registration certificate to the applicant to that effect.

28. Registration of shorter address permissible.—(1) It shall be lawful for any manufacturer or packer to make an application to the Director or the Controller for the registration of a shorter address, in addition to the complete address referred to in sub-rule (2) of rule 27.

(2) The Director or the Controller may, if he is satisfied after inquiry that the shorter address is sufficient to enable the consumer or any other person to identify the manufacturer or the packer, register such shorter address.

(3) Where a shorter address is registered by the Director or the Controller, it shall be lawful for the manufacturer or packer to state such shorter address on the label of each commodity pre-packed by him or it.

29. Registration of manufacturers and packers, etc.—(1) The Director or the Controller shall enter in a register, to be maintained by him for the purpose, the name and complete address of each manufacturer or packer by whom application for such registration has been made to him under rule 27.

(2) The register referred to in sub-rule (1) shall be open to the inspection of the public without payment of any fee.

30. Compilation of lists of manufacturers or packers and their circulation.—The Director/Controller shall compile a State-wise list of the manufacturers and packers registered by him under rule 29 and shall circulate such list to the Controller of the concerned State to enable the Controller to take, or cause to be taken, samples at the premises of the manufacturer or, where the manufacturer is not the packer, of the packer.

CHAPTER VII

GENERAL

31. (1) Any advertisement mentioning the retail sale price of the pre-packaged commodity shall contain a declaration as to the net quantity or number of the commodity contained in the package.

(2) The font size of the net quantity in the advertisement shall be same as that of retail sale price.

¹[**32. Fine for contravention of rules.**—Whoever contravenes any provisions of these rules, for which no punishment is provided, shall be punished with fine of five thousand rupees.

32A. Sum of compounding of offences.—The sum of compounding of offences committed under the Act shall be as specified in the following Table, namely:—

1. Subs. by G.S.R. 629(E), dated 23rd June 2017, for rule 32 (w.e.f. 1-1-2018). Earlier rule 32 was amended by G.S.R. 385(E), dated 14th May, 2015 (w.e.f. 14-5-2015), and by G.S.R. 359(E), dated 6th June, 2013 (w.e.f. 6-6-2013). Rule 32, before substitution, stood as under:

"32. Penalty for contravention of Rules.—(1) Whoever contravenes the provisions of rules 27 and 28, he shall be punished with fine of four thousand rupees.

(2) Whoever contravenes any other provision of these rules, for the contravention of which no punishment has been provided, he shall be punished with fine of two thousand rupees.

(3) Sum of compounding of offences.—The sum of compounding of offences committed under the said Act shall be as specified in the following Table, namely:—

TABLE

Sl. No.	Offence	Compounding amount	
(1)	(2)	(3)	
		If the application for compounding is by retailers or wholesale dealers	If the application for compounding is by manufacturers or importers
1.	Contravention of section 29	Rupees two thousand	Rupees ten thousand
2.	Contravention of sub-section (1) of section 36	Rupees five thousand	Rupees twenty five thousand
3.	Contravention of sub-section (2) of section 36	Rupees ten thousand	Rupees fifty thousand
4.	Selling of products for more than the maximum retail price"	Rupees two thousand	Rupees five thousand

TABLE

Sl. No.	Offence	Compounding amount	
(1)	(2)	(3)	
		If the application for compounding is by retailers or wholesale dealers	If the application for compounding is by manufacturers or importers
1.	Contravention of section 29	Rupees two thousand	Rupees ten thousand
2.	Contravention of sub-section (1) of section 36	Rupees five thousand	Rupees twenty-five thousand
3.	Contravention of sub-section (2) of section 36	Rupees ten thousand	Rupees fifty thousand

33. Power to relax.—¹[(1)] The Central Government may, after ascertaining the genuineness ²[***], permit a manufacturer or packer to pack for sale the packages for a reasonable period by relaxing one or more provision of these rules with such corrective measures as may be specified.

³[(2)] The Central Government may, after ascertaining the genuineness of a case stated in the application permit a manufacturer or packer or importer to pack or sell of the packages other than specified in the Second Schedule for a maximum period of one year by relaxing the rules.]

34. Repeal and savings.—(1) The Standards of Weights and Measures (Packaged Commodities) Rules, 1977 (herein under referred to as the said rules) are hereby repealed:

Provided that such repeal shall not affect:

- the previous operations of the said rules or anything done or omitted to be done or suffered therein; or
- any right, privilege, obligation or liability acquired, accrued or incurred under the said rules; or
- any penalty, forfeiture or punishment incurred in respect of any offence committed against the said rules; or
- any investigation, legal proceedings or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment as aforesaid.

And any such investigation, legal proceedings or remedy may be instituted, continued or enforced and any such penalty, forfeiture or punishment may be imposed as if the said rules had not been rescinded.

(2) Notwithstanding such repeal anything done or any action taken or purported to have been done or taken including approval of letter, exemption granted, fees collected, any adjudication, enquiry or investigation commenced, licence and registration of manufacturers, dealers, importers of pre-packaged

1. Rule 33 re-numbered as sub-rule (1) thereof, by G.S.R. 427(E), dated 5th June, 2012 (w.e.f. 5-6-2012).

2. The words "of the compounding of a case or a Court decision stated in the application" omitted by G.S.R. 385(E), dated 14th May, 2015 (w.e.f. 14-5-2015).

3. Ins. by G.S.R. 427(E), dated 5th June 2012 (w.e.f. 5-6-2012).

commodities, or show cause notice, decision, determination, approval, authorisation issued, given or done under the said rules shall if in force at the commencement of the said rules continue to be in force and have effect as if issued, given or done under the corresponding provisions of these rules.

(3) The provisions of these rules shall apply to any application made to the Central Government or as the case may be the State Government under the said rules for licence, registration of manufacturers, importers, dealers of pre-packaged commodities pending at the commencement of these rules and to any proceedings consequent thereon and to any registration granted in pursuance thereof.

(4) Any legal proceeding pending in any court under the said rules at the commencement of these rules may be continued in that court as if these rules had not been framed.

(5) Any appeal preferred to the Central Government or as the case may be the State Government under the said rules and pending shall be deemed to have been made under the corresponding provisions of these rules.

THE FIRST SCHEDULE

[See rule 2(e)]

1. Maximum permissible errors on net quantity declared by weight or volume.—(1) The maximum permissible error, in excess or in deficiency, in the net quantity by weight or volume of any commodity shall be as specified in Table I below:—

TABLE I

Maximum permissible errors on net quantities declared by weight or by volume

Sl. No.	Declared quantity g or ml	Maximum permissible error in excess or in deficiency	
		As percentage of declared quantity	g or ml
(i)	up to 50	9	—
(ii)	50 to 100	—	4.5
(iii)	100 to 200	4.5	—
(iv)	200 to 300	—	9
(v)	300 to 500	3	—
(vi)	500 to 1000	—	15
(vii)	1000 to 10000	1.5	—
(viii)	10000 to 15000	—	150
(ix)	More than 15000	1.0	—

(2) The maximum permissible error specified as percentage shall be rounded off to the nearest one-tenth of a g or ml, for a declared quantities less than or equal to 1000g or ml and to the next whole g or ml for declared quantities above 1000 g or ml.

2. The maximum permissible errors on net quantity declared by length, area or number.—(1) The maximum permissible error, in excess or in deficiency, in the net quantity declared in terms of length, area or number of any commodity not specified in the First Schedule shall be as specified in Table II below:—

TABLE II

The maximum permissible errors on net quantities declared by length, area or number

Sl. No.	Quantity Declared	Maximum permissible error in excess or in deficiency
(i)	in units of length	2% of declared quantity up to 10 metre and thereafter 1% of declared quantity.
(ii)	in units of area	4% of declared quantity up to 10 sq. metre and thereafter 1% of declared quantity.
(iii)	by number	2% of declared quantity.

¹[THE SECOND SCHEDULE

(See rule 5)

COMMODITIES TO BE PACKED IN SPECIFIED QUANTITIES

The following commodities shall be packed in such quantities by weight, measure or number as are specified in the corresponding entries against them.

Sl. No.	Commodities	Quantities in which to be packed
1	2	3
1.	Baby food	25 g, 50 g, 100 g, 200 g, 300 g, 350 g, 400 g, 450 g, 500 g, 600 g, 700g, 800 g, 900 g, 1 kg, 2 kg, 5 kg and 10 kg.
2.	Weaning food.	Below, 50g no restriction, 50 g, 100 g, 200 g, 300 g, 400 g, 500 g, 600 g, 700 g, 800 g, 900 g, 1 kg, 2 kg, 5 kg and 10 kg, ² [75 g, 125 g, 150 g, 250 g].
3.	Biscuits	25 g, 50 g, 60 g, 75 g, 100 g, 120 g, 150 g, 200g, 250 g, 300 g, ² [350 g, 400 g] thereafter in multiples of 100 g up to 1 kg and thereafter in multiples of 500 g up to 5 kg.
4.	Bread including brown bread but excluding bun.	50g and there after in of multiple 50 g. upto 500 g, and above 500 g in the multiples of 100g.
5.	Un-canned packages of butter and margarine	Below 25 g no restriction, 25 g, 50 g, 100 g, 200 g, 500 g, 1, kg, 2 kg, 5 kg, and thereafter in multiples of 5 kg.
6.	Cereals and Pulses	Below 100 g no restriction, 100 g, 200 g, 500 g, 1 kg, 2 kg, 5 kg and thereafter multiples of 5 kg
7.	Coffee	Below 25 g no restriction, 25 g, 50 g, 75 g, 100 g, 150 g, 200 g, 250 g, 500 g, ² [750 g], 1 kg, 1.5 kg, 2 kg, and thereafter in multiples of 1 kg.
8.	Tea	³ [Below 25 g no restriction, 25 g, 50 g, 75 g, 100 g, 125 g, 150 g, 200 g, 250 g, 500 g, 750 g, 1 kg, 1.5kg, 2 kg and thereafter in the multiple of 1 kg.]

1. Subs. by G.S.R. 427(E), dated 5th June, 2012, for Second Schedule (w.e.f. 5-6-2012).

2. Ins. by G.S.R. 359(E), dated 6th June, 2013 (w.e.f. 6-6-2013).

3. Subs. by G.S.R. 359(E), dated 6th June, 2013 (w.e.f. 6-6-2013).

1	2	3
9.	Materials which may be constituted or reconstituted as beverages	Below 50 g no restriction, 50 g, 75 g, 100 g, ¹ [125 g,] 200 g, 250 g, 400 g, 500 g, 750 g, 1 kg and thereafter in multiples of 1 kg (56 g and 61 g for medical purpose only).
10.	Edible Oils Vanaspati, ghee, butter oil	50 g, 100 g, 200 g, 250 g, 500 g, 1 kg, 2 kg, 3 g, 5 kg and thereafter in multiples of 5 kg ¹ [below 50 g no restriction, 175 g, 300 g, 750 g]. If net quantity is declared by volume then 50 ml, 100 ml, 200 ml, 250 ml, 500 ml, 1 litre, 2 litre, 3 litre, 5 litre and thereafter in multiple of 5 litre and the net quantity must be declared by mass also in the same size of letters/numerals ¹ [below 50 ml no restriction, 175 ml, 300 ml, 750 ml].
11.	Milk Powder	Below 50 g no restriction, 50 g, 100 g, 200 g, 250g, 500 g, 1 kg and thereafter in multiples of 500 g.
² [12.	Non-soapy detergents (powder)	Below 50 g no restriction, 50 g, 75 g, 100 g, 150 g, 200 g, 250 g, 400 g, 500 g, 700 g, 750 g, 800g, 1 kg, 1.5 kg, 2 kg and thereafter, in multiples of 1 kg.]
13.	Rice (powdered), flour, atta, rawa and suji	100 g, 200 g, 500 g, 1 kg, 1.25 kg, 1.5 kg, 1.75 kg, 2 kg, 5 kg, and thereafter in multiples of 5 kg.
14.	Salt	Below 50 g in multiples of 10 g, 50 g, 100 g, 200g, 500 g, 750 g, 1kg, 2 kg, 5 kg and thereafter in multiples of 5 kg.
15.	Soaps	
	(a) Laundry Soap	25 g, 50 g, 75 g, 100 g, 125 g, 150g, and thereafter in multiples of 50 g.
	(b) Non-soapy detergent cakes/bars	Below 50 g, of no restriction, 50 g, 75 g, 100g, 125 g, 150 g, 200 g, 300g, and thereafter in multiples of 100 g.
	(c) Toilet Soap including all kinds of bath soap (cakes)	15 g, 25 g, 50 g, 60 g, 75 g, 100 g, 125 g, 150 g, thereafter in multiples of 50 g.
16.	Aerated soft drinks, non-alcoholic beverages	65 ml (fruit-based drinks only), 100 ml, 125 ml (fruit based drinks only), 150 ml, 160 ml, 175 ml, 180 ml, 200 ml, 240 ml, 250 ml, 300 ml, 330 ml ³ [***], 350 ml, 400 ml, 475 ml, 500 ml, 600 ml, 750 ml, 1 litre, 1.2 litre, 1.25 litre, 1.5 litre, 1.75 litre, 2 litre, 2.25 litre, 2.5 litre 3 litre, 4 litre and 5 litre
17.	Mineral water and drinking water	100 ml, 150 ml, 200 ml, 250 ml, 300 ml, 500 ml, 750 ml, 1 litre, 1.5 litre, 2 litre, 3 litre, 4 litre and 5 litre and in multiples of 5 litre.

1. Ins. by G.S.R. 359(E), dated 6th June, 2013 (w.e.f. 6-6-2013).

2. Subs. by G.S.R. 385(E), dated 14th May, 2015, for Serial No. 12 and entries relating thereto (w.e.f. 14-5-2015). Earlier it was amended by G.S.R. 359(E), dated 6th June, 2013 (w.e.f. 6-6-2013).

3. The brackets and words "(in can only)" omitted by G.S.R. 359(E), dated 6th June, 2013 (w.e.f. 6-6-2013).

1	2	3
18.	Cement in bags	1 kg, 2 kg, 5 kg, 10 kg, 20 kg, 25 kg, 40 kg (for White cement only) and 50 kg.
19.	Paint, varnish etc.	
	(a) Paint (other than paste paint of solid paint), varnish, varnish stains, enamels	50 ml, 100 ml, 200 ml, 500 ml, 1 litre, 2 liter, 3 litre, 4 litre, 5 litre and thereafter in multiples of 5 litre,.
	(b) Paste paint and solid paint	500 g, 1 kg, 1.5 kg, 2 kg, 3 kg, 5 kg, 7 kg and thereafter multiple of 5 kg.
	(c) Base paint	100 ml, 250 ml, 400 ml, 450 ml, 500 ml, 900 ml, 925 ml, 950 ml, 975 ml, 1 litre, 1.5 litre, 2.0 litre, 2.5 litre, 3.5 litre, 3.6 litre, 3.7 litre, 3.8 litre, 3.9 litre and 4 litre and no restriction above 4 litre.]

THE THIRD SCHEDULE

[See rule 11(4)]

Declaration of quantity in relation to commodities (sold by weight or volume) which may be qualified by the words "When packed"

Sl. No.	Name of commodity
1.	All kinds of Soaps
2.	Lotions
3.	Cream (other than cream of milk)
¹ [4.	Comphor]

THE FOURTH SCHEDULE

[See rule 12(2)]

EXCEPTIONS REFERRED TO IN RULE 12(2)

1. The following commodities in packaged form may be sold by weight, measure or number as shown against the commodity:—

TABLE

Sl. No.	Commodity	Whether declaration to be expressed in terms of weight, measures or number or two or more of them
1	2	3
1.	Aerosol Products	Weight
2.	Acids in liquid form	Weight or volume
3.	Compressed or liquefied gas (but not liquefied petroleum gas)	Weight and equivalent volume at stated temperature and pressure
4.	Curd	weight
5.	Electric Cables	Length or weight
6.	Electric wire	Length or weight

1	2	3
7.	Fencing wire	Number or weight
8.	Fruits, all kinds	Number or weight
9.	Furnace oil	Weight or volume
10.	Non-edible vegetable oil	Weight or volume
11.	Edible Oil, Vanaspati ghee and butter oil	Weight or volume
12.	Heavy residual fuel oil	Weight
13.	Industrial diesel fuel	Volume
14.	Honey malt-extract, golden syrup treacle	Weight
15.	Ice cream and other similar frozen products	¹ [Weight or volume]
16.	Liquid chemicals	Weight or volume
17.	Liquefied petroleum gas	Weight
18.	Nails, wood screws	Number or weight
19.	Paints other than paste paint or solid paint) Varnish varnish stains, enamels	Volume
20.	Paste paint, solid paint	Weight
21.	Rasgulla, Gulabjamun and other sweet preparations	Weight
22.	Ready-made garments	Number
23.	Sauces, all kinds	Weight
24.	Tyres and tubes	Number
25.	Yarn	Weight or length of yarn
26.	Cosmetics including creams, sampoo, lotions and perfumes	Weight or measure

THE FIFTH SCHEDULE

(See rule 19)

MANNER OF SELECTION OF SAMPLE PACKAGES

1. For determination of the net quantity for any commodity contained in a package, the sample size shall be such as is specified in the corresponding entry column 2 of the Table below against the lot size specified in Column 1 of the said Table.

Lot Size	Sample size
(1)	(2)
Less than 4000	32
More than 4000	80

2. The sample shall be selected at random in accordance with the manner specified in paragraphs 3 and 4.

1. Subs. by G.S.R. 427(E), dated 5th June, 2012, for "weight" (w.e.f. 5-6-2012). Earlier it was substituted by G.S.R. 784(E), dated 24th October, 2011, read with corrigendum G.S.R. 832(E), dated 23rd November, 2011, for "volume" (w.e.f. 1-7-2012).

3. Where, for the determination of the net quantity of any commodity contained in a package it is necessary to take samples of packages stored by the manufacture or packer in a ware house, godown or at any other place, the sample shall be selected at random, from ever lot of packages and shall be picked out from the top, bottom, center, right, left, front and rear of the stocks so that the samples may adequately represent the packages in the lot.

4. Where, for the determination of the net quantity of any commodity contained in a package it is necessary to take samples form the place where the package is being filled such samples shall be selected from among the package which have already been filled, or in the alternatively, the requisite number of empty containers may be taken over and each of them shall be adequately marked for proper identification and the tare weight of each container shall be accurately noted and thereafter the marked containers shall be introduced at random in the packing process so that, after the packages are filled in may be possible to determine the net quantity.

Explanation.—In this schedule 'Sample size' means the umber of packages to be selected as sample.

THE SIXTH SCHEDULE

(See rule 19)

DETERMINATION OF THE NET QUANTITY OF COMMODITIES CONTAINED IN PACKAGES

PART I

EQUIPMENT

1. Equipments required.—(1) The Director, Controller or any Legal Metrology Officer authorized by or under the Act, to determine the net quantity; of commodity contained in any package, shall be provided by the concerned Government with adequate equipments and facilities to carry out his work to the required degree of accuracy in an Expedient and efficient manner.

(2) The equipments, referred to in sub-paragraph (1), shall ordinarily consist of working standard weights and balances, or any other weight or measure declared by the Director to be suitable for determining the net quantity contained in the concerned package.

(3) The Director, Controller or any Legal Metrology Officer shall, before determining the net quantity contained in any package, ensure that the working standards and other equipments are functioning properly.

2. Working standards to be ordinarily used.—(1) Ordinarily, working standards and other weights and measures, duly verified shall be used for determining the net quantities contained in packages and the errors, if any, in relation to the net quantity declared on the package:

Provided that, where it is necessary to use the weights and measures, owned or controlled by the manufacturer, packer or wholesale dealer as the case may be such weights and measures, shall be used unless the maximum permissible error of such weights and measures is twenty per cent. or less of the maximum error permitted in relation to the net quantity of the commodity contained in the packages.

(2) It shall be the duty of every manufacturer, packer or wholesale dealer to render such assistance the Director, Controller or any Legal Metrology Officer as the Director or other authorized person may require in order carrying out his duties expeditiously and efficiently.

(3) Where any weight, measure or other equipment, owned or controlled by the manufacturer, packer or wholesale dealer is used by the Director, Controller or any Legal Metrology Officer for the determination or the net quantity contained in any package, such weight, measure or other equipment shall not be released by the Director or other authorized person until his work is completed.

PART II

INSTRUCTIONS WITH REGARD TO THE DETERMINATION OF QUANTITY AND ERROR AT MANUFACTURER'S OR PACKER'S PREMISES

3. (1) If empty tare packages are available, one such package shall be taken and tare package weight determined. If the tare package weight is equal to or less than three-tenths of the maximum permissible error for the concerned commodity of that quantity, it shall be assumed that the tare package weight so determined is valid for all the other packages in the sample, and the sample packages shall then be weighed for gross weight, and thereafter the net weight of commodity contained in each package shall be obtained by subtracting the tare package weight from the gross package weight. If the tare package weight so determined is more than three tenths of the maximum permissible error in relation to the commodity for that quantity, weight of four emptier tare packages shall be determined. If the difference between the maximum tare package weight and the minimum tare package weight of the five samples is equal to or less than four tenths of the maximum permissible error allowed for that commodity for that quantity, the tare weight of the package shall be taken as equal to the average of the five tare package weights. The gross weight of the package in the sample shall then be determined and the average tare package weight shall be subtracted from the gross package weight to obtain the net contents of the commodity in each package, in the sample. However, when the difference in the five individual tare weights of the packages exceeds the limit of four tenths of the maximum permissible error specified above, the procedure specified in sub-paragraph (4) or sub-paragraph (5), as the case may be, shall be adopted for determining the net quantity of individual packages.

(2) In the absence of empty tare packages, one package from the sample shall be opened and the net weight of the commodity and the tare weight of the package determined. If the tare weight of the package is equal to or less than three-tenth of the maximum permissible error for that concerned commodity of that quantity, it shall be assumed that the tare weight of one package so determined is valid for all the other packages in the sample, and the remaining packages shall then be weighed for gross weight, and thereafter the net weight of commodity contained in each package shall be obtained by subtracting the tare weight from the gross weight.

(3) If the tare weight of the package specified in sub-paragraph (2) is more than three-tenths of the maximum permissible error in relation to that commodity, four more packages in the samples shall be opened and the net weight of the commodity in each package as well as the tare weight of each package shall be determined. If the difference between the maximum tare weight and the minimum tare weight of five samples is equal to or less than four-tenths of the maximum permissible error for that commodity of that quantity, the tare weight of the package shall be taken as equal to the arithmetic mean of the five tare weights. The gross weight of the packages in the sample shall then be determined to the requisite accuracy and the average tare weight of the contained shall be subtracted from the gross weight to obtain the net contents of the commodity in each package in the sample.

(4) Where it is found on examining the first package, as described in sub-paragraph (2) that the tare weight of the container exceeds the limits specified in sub-paragraph

(2) and sub-paragraph (3) and the determination of net contents, cannot be carried out without opening the remaining packages, or it is not, possible to use the procedure to use the procedure described in sub-paragraph (5) the size of the sample to be examined shall be restricted to that indicated in column (2), in accordance with the lot indicated in column (1) of Table of the Fifth Schedule and the determination of net quantity shall be carried out by opening all the packages in the sample.

(5) Where it is likely that the process of determination of the actual net quantity may be destructive and it is possible to feed empty package into the packing process without affecting the results, the following procedure shall be used:

- (a) the number of empty packages, depending upon the size of the lot, in accordance with columns (1) and (2) of Table of the Fifth Schedule shall be selected;
- (b) the empty package shall be marked suitably to identify them from the other packages;
- (c) the weight of each empty package, with its other parts which are to be fitted on it after it is filled shall be determined and the weight suitably recorded on the empty package and also on the Form specified in the Seventh Schedule;
- (d) the empty package shall then be filled by introducing them in a random manner in the packing process, and such introduction shall be adequately spread over the duration in accordance with which; the size of the lot is determined;
- (e) the marked packages shall be taken out after completion of the filling and sealing operations and each such filled package shall be weighed again to the requisite accuracy;
- (f) the net quantity shall be obtained by deducting the tare weight determined in accordance with clause (c) from the gross weight.

(6) The Director, Controller or any Legal Metrology Officer shall enter results of this examination of gross weight, net weight and tare weight in the Form specified in the Seventh Schedule along with such other observation as he may wish to make on the basis of his examination.

4. Determination of liquid contents by volume.—(1) If the specific gravity of the liquid commodity filled in packages remains sufficiently constant for a lot and it is possible to determine accurately its specific gravity the method of determination of net contents by weight, described in paragraph 3 may be used.

(2) If the method described in sub-paragraph (1) is not feasible the containers shall be opened and the contents of each package poured out carefully into the appropriate volume measure.

(3) The reading of the actual net volume of the commodity in every package shall be noted carefully and recorded in the Form specified in the Seventh Schedule.

5. Verification of length of commodities.—(1) The sample shall be selected in the manner specified in the Fifth Schedule.

(2) If it is not possible to measure the dimensions without opening the package, the package shall be opened.

(3) The length of the commodity shall be measured by means of a calibrated steel tape of suitable length.

(4) If the actual length of the commodity is so great that it is not possible to measure it with the tape measure and a suitable length measuring instrument is available on the premises, that instrument shall be used, after duly calibrating it by suitable means, with the steel tape serving as a working standard of length.

(5) The reading of the actual length of the commodity in every package shall be noted carefully and recorded in the Form specified in the Seventh Schedule.

6. Verification of commodities packed by number.—The Director, Controller or any Legal Metrology Officer shall take packages from the sample drawn by him in the manner specified in the Fifth Schedule and determine the extent of error, by actual counting in each such package and may, for that purpose open all packages.

7. Checking of other declarations.—(1) The declarations made on the package or on the label affixed thereto, shall be examined with a view to ascertaining whether such declarations conform to these rules and may be ensured either at the factory level or at the depot of the factory.

(2) The additional declarations made on the package or on the label affixed thereto in respect of item (f) and (g) of sub-rule (1) of rule 6 shall also be examined to ascertain whether they are adequate.

1[8. Determination of mean or average net quantity or net volume.—After determining the individual values of net quantity or net volume or length or number of the commodity contained in the package, as per the procedure outlined in item numbers 3 to 6 of this Part, the mean or average value shall be calculated by summing up the individual values (x_i) and dividing it by the number of sample packages (n) taken for testing, by the formula—

$$\text{Average Net value } (\bar{x}) = \sum x_i / n.$$

9. Determination of Standard deviation of values.—The standard deviation (σ) of individual values [x_i] is determined by the formula—

$$\sigma = \sqrt{\frac{1}{n-1} \sum (x_i - \bar{x})^2}; \text{ where,}$$

x_i = individual values of net quantity or net volume or length or number,

$\bar{x}$ = average or mean value of net quantity or net volume or length or number.

10. Corrected average net quantity or net volume.—The corrected average net quantity X_c is determined from the value of average net quantity [$\bar{x}$] by using the formula—

$$X_c = \bar{x} + (\sigma \times C), \text{ where } C \text{ is the correction factor.}]$$

THE SEVENTH SCHEDULE

FORM A

WEIGHT CHECKING - DATA SHEET

A	
Particulars of Package	Name of Manufacturer/Packer
	Address Price Month Year
B	
Commodity Classification	² [Lot Size: Sample Size: Maximum permissible error (g)]

1. Ins. by G.S.R. 629(E), dated 23rd June, 2017 (w.e.f. 1-1-2018).

2. Subs. by G.S.R. 629(E), dated 23rd June, 2017, for entries in column (2) (w.e.f. 1-1-2018).

C	Sample No.	Gross Weight	Tare Weight	Net Weight/error	Remarks
Weight Checking Data	1	200			
D Results	Declared Wt	Wt			Avg.
E GENERAL COMMENTS WITH REGARD TO THE COMPLIANCE WITH THE ACT AND THE RULES MADE THEREUNDER					
F	Signature and name of the authorized person		Signature and name of manufacturer/packer authorized by manufacturer or any competent witness		
	Designation:		Place:.....		
	Name:				
	Time:				

Note.—If the data sheet runs into more pages than one, the each continuation sheet shall bear the signatures specified in Part F.

FORM B VOLUME/LENGTH CHECKING - DATA SHEET

A	Name of Manufacturer/Packer				
Particulars of Package	Address	Price	Month	Year	
B	¹ [Lot Size: Sample Size:				
Commodity Classification	Maximum permissible error]				
C	Sample No.	Gross Weight	Tare Weight	Net Weight/error	Remarks

1. Subs. by G.S.R. 629(E), dated 23rd June, 2017, for entries in column (2) (w.e.f. 1-1-2018).

Volume/Length Checking Data		1 200
D Results	Declared Volume/Length Avg Volume/ Length	
E GENERAL COMMENTS WITH REGARD TO THE COMPLIANCE WITH THE ACT AND THE RULES MADE THEREUNDER		
F		
Signature and name of the authorized person		Signature and name of manufacturer/packer authorized by manufacturer or any competent witness Place:.....
Designation:		
Name:		
Time:		

Note.—If the data sheet runs into more pages than one, the each continuation sheet shall bear the signatures specified in Part F.



भारत का राजपत्र The Gazette of India

सी.जी.-डी.एल.-अ.-30122022-241508
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असाधारण
EXTRAORDINARY

भाग II—खण्ड 3—उप-खण्ड (i)
PART II—Section 3—Sub-section (i)

प्राधिकार से प्रकाशित
PUBLISHED BY AUTHORITY

सं. 812]
No. 812]

नई दिल्ली, बृहस्पतिवार, दिसम्बर 29, 2022/पौष 8, 1944
NEW DELHI, THURSDAY, DECEMBER 29, 2022/PAUSHA 8, 1944

उपभोक्ता मामले, खाद्य और सार्वजनिक वितरण मंत्रालय
(उपभोक्ता मामले विभाग)
अधिसूचना

नई दिल्ली, 29 दिसम्बर, 2022

सा.का.नि. 910(अ).—केंद्रीय सरकार, विधिक मापविज्ञान अधिनियम, 2009 (2010 का 1) की धारा 52 की उपधारा (2) के खंड (ज) और खंड (थ) के साथ पठित उपधारा (1) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए, विधिक मापविज्ञान (पैकबंद वस्तुएं) नियम, 2011 में और संशोधन करने के लिए निम्नलिखित नियम बनाती है, अर्थात:-

- (1) इन नियमों का संक्षिप्त नाम विधिक मापविज्ञान (पैकबंद वस्तुएं) संशोधन (संशोधन) नियम, 2022 है।
(2) ये राजपत्र में प्रकाशन की तारीख से प्रवृत्त होंगे।
- विधिक मापविज्ञान (पैकबंद वस्तुएं) संशोधन नियम, 2022 के नियम 1 के उप-नियम (2) में अंकों, अक्षरों और शब्दों "1 जनवरी 2023" के स्थान पर अंक, अक्षर और शब्द "1 फरवरी 2023" रखा जाएगा।

[फा. सं. I-10/22/2021- डब्ल्यू एम (भाग 1)]

अनुपम मिश्रा, संयुक्त सचिव

टिप्पण: विधिक मापविज्ञान (पैकबंद वस्तुएं) संशोधन नियम, 2022 को भारत के राजपत्र, असाधारण, भाग 2, खंड 3, उप-खंड (i) में संख्यांक सा.का.नि. 226 (अ), तारीख 28 मार्च, 2022 द्वारा प्रकाशित किए गए थे और अधिसूचना सं. सा.का.नि. 859 (अ) तारीख 30 नवम्बर, 2022 द्वारा अंतिम संशोधित किए गए।

MINISTRY OF CONSUMER AFFAIRS, FOOD AND PUBLIC DISTRIBUTION**(Department of Consumer Affairs)****NOTIFICATION**

New Delhi, the 29th December, 2022

G.S.R. 910(E).—In exercise of the powers conferred by sub-section (1) read with clauses (j) and (q) of sub-section (2) of section 52 of the Legal Metrology Act, 2009 (1 of 2010), the Central Government hereby makes the following rules further to amend the Legal Metrology (Packaged Commodities) Rules, 2011, namely:—

1. (1) These rules may be called the Legal Metrology (Packaged Commodities) (Amendment) Rules, 2022.
(2) They shall come into force on the date of their publication in the Official Gazette.
2. In the Legal Metrology (Packaged Commodities) (Amendment) Rules, 2022, in rule 1, in sub-rule (2), for the figures, letters and words “1st day of January, 2023”, the figures, letters and words “1st Day of February, 2023” shall be substituted.

[F. No. I-10/22/2021W&M (Part 1)]

ANUPAM MISHRA, Jt. Secy.

Note: The Legal Metrology (Packaged Commodities) Amendment Rules, 2022 were published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) *vide* number G.S.R. 226 (E), dated the 28th March, 2022 and last amended *vide* notification number G.S.R. 859 (E), dated the 30th November, 2022.



भारत का राजपत्र The Gazette of India

सी.जी.-डी.एल.-अ.-27012023-243267
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असाधारण
EXTRAORDINARY

भाग II—खण्ड 3—उप-खण्ड (i)
PART II—Section 3—Sub-section (i)

प्राधिकार से प्रकाशित
PUBLISHED BY AUTHORITY

सं. 55]
No. 55]

नई दिल्ली, शुक्रवार, जनवरी 27, 2023/माघ 7, 1944
NEW DELHI, FRIDAY, JANUARY 27, 2023/MAGHA 7, 1944

उपभोक्ता मामले, खाद्य और सार्वजनिक वितरण मंत्रालय

(उपभोक्ता मामले विभाग)

अधिसूचना

नई दिल्ली, 27 जनवरी, 2023

सा.का.नि. 60(अ).—केंद्रीय सरकार, विधिक मापविज्ञान अधिनियम, 2009 (2010 का 1) की धारा 52 की उपधारा (2) के खंड (ज) और खंड (थ) के साथ पठित उपधारा (1) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए, विधिक मापविज्ञान (पैकबंद वस्तुएं) नियम, 2011 में और संशोधन करने के लिए निम्नलिखित नियम बनाती है, अर्थात:-

- (1) इन नियमों का संक्षिप्त नाम विधिक मापविज्ञान (पैकबंद वस्तुएं) संशोधन (संशोधन) नियम, 2023 है।
- (2) ये राजपत्र में प्रकाशन की तारीख से प्रवृत्त होंगे।
2. विधिक मापविज्ञान (पैकबंद वस्तुएं) संशोधन नियम, 2022 के नियम 1 के उप-नियम (2) में अंकों, अक्षरों और शब्दों "1 फरवरी 2023" के स्थान पर अंक, अक्षर और शब्द "1 अप्रैल 2023" रखा जाएगा।

[फा. सं. I-10/22/2021- डब्ल्यू एम]

अनुपम मिश्रा, संयुक्त सचिव

टिप्पण: विधिक मापविज्ञान (पैकबंद वस्तुएं) संशोधन नियम, 2022 को भारत के राजपत्र, असाधारण, भाग II, खंड 3, उप-खंड (i) में संख्यांक सा.का.नि. 226 (अ), तारीख 28 मार्च, 2022 द्वारा प्रकाशित किए गए थे और अधिसूचना सं. सा.का.नि. 910 (अ) तारीख 29 दिसंबर, 2022 द्वारा अंतिम संशोधित किए गए।

MINISTRY OF CONSUMER AFFAIRS, FOOD AND PUBLIC DISTRIBUTION**(Department of Consumer Affairs)****NOTIFICATION**

New Delhi, the 27th January, 2023

G.S.R. 60(E).— In exercise of the powers conferred by sub-section (1) read with clauses (j) and (q) of sub-section (2) of section 52 of the Legal Metrology Act, 2009 (1 of 2010), the Central Government hereby makes the following rules further to amend the Legal Metrology (Packaged Commodities) Rules, 2011, namely:—

1. (1) These rules may be called the Legal Metrology (Packaged Commodities) Amendment (Amendment) Rules, 2023.

(2) They shall come into force on the date of their publication in the Official Gazette.

2. In the Legal Metrology (Packaged Commodities) Amendment Rules, 2022, in rule 1, in sub-rule (2), for the figures, letters and words “1st day of February, 2023”, the figures, letters and words “1st Day of April, 2023” shall be substituted.

[F. No. I-10/22/2021-W&M]

ANUPAM MISHRA, Jt Secy.

Note: The Legal Metrology (Packaged Commodities) Amendment Rules, 2022 were published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) *vide* number G.S.R. 226 (E), dated the 28th March, 2022 and last amended *vide* notification number G.S.R. 910 (E), dated the 29th December, 2022.



भारत का राजपत्र The Gazette of India

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असाधारण
EXTRAORDINARY

भाग II—खण्ड 3—उप-खण्ड (i)
PART II—Section 3—Sub-section (i)

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सं. 367]
No. 367]

नई दिल्ली, शुक्रवार, जून 23, 2023/आषाढ़ 2, 1945
NEW DELHI, FRIDAY, JUNE 23, 2023/ASHADHA 2, 1945

उपभोक्ता मामले, खाद्य और सार्वजनिक वितरण मंत्रालय

(उपभोक्ता मामले विभाग)

अधिसूचना

नई दिल्ली, 23 जून, 2023

सा.का.नि. 456(अ).—केंद्रीय सरकार, विधिक माप विज्ञान अधिनियम, 2009 (2010 का 1) की धारा 52 की उपधारा (2) के खंड (ज) और (थ) के साथ पठित उपधारा (1) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए विधिक मापविज्ञान (पैकबंद वस्तुएं) नियम, 2011 में और संशोधन करने के लिए निम्नलिखित नियम बनाती है, अर्थात्:-

1. (1) इन नियमों का संक्षिप्त नाम विधिक मापविज्ञान (पैकबंद वस्तुएं) (संशोधन) नियम, 2023 है।

(2) ये राजपत्र में इनके प्रकाशन की तारीख से प्रवृत्त होंगे।

2. विधिक मापविज्ञान (पैकबंद वस्तुएं) नियम, 2011 के नियम 6 में, -

(क) उपनियम (1) में, -

(i) खंड (क) में, परंतुक के स्थान पर, निम्नलिखित परंतुक रखा जाएगा, अर्थात्:-

"परन्तु इलेक्ट्रॉनिक उत्पाद के मामले में, ऐसे उत्पाद के पैकेज में यथास्थिति विनिर्माता या पैककर्ता या आयातक, का नाम पैकेज पर घोषित किया जाएगा, और ऐसी घोषणा उपभोक्ताओं को पते और अन्य संबंधित जानकारी के लिए क्यूआर कोड स्कैन करने के लिए भी सूचित करेगी, यदि ऐसी जानकारी क्यूआर कोड के माध्यम से घोषित की जाती है और पैकेज पर ही घोषित नहीं की जाती है;"

(ii) खंड (ख) में , परंतुक के स्थान पर, निम्नलिखित परंतुक रखा जाएगा, अर्थात्:-

"परन्तु इलेक्ट्रॉनिक उत्पाद के मामले में, ऐसे उत्पाद के पैकेज में उपभोक्ताओं को वस्तु के सामान्य या जेनेरिक नाम के लिए तथा जहां ऐसे पैकेज में एक से अधिक उत्पाद हैं, तो प्रत्येक उत्पाद के नाम और संख्या के लिए या प्रत्येक उत्पाद की मात्रा के लिए क्यूआर कोड स्कैन करने के लिए सूचित करेगा, यदि ऐसी जानकारी क्यूआर कोड के माध्यम से घोषित की जाती है और पैकेज पर ही घोषित नहीं की जाती है";

(iii) खंड (च) में , परंतुक के स्थान पर, निम्नलिखित परंतुक रखा जाएगा, अर्थात्:-

"परन्तु इलेक्ट्रॉनिक उत्पाद के मामले में, ऐसे उत्पाद का पैकेज, जहां ऐसी जानकारी क्यूआर कोड के माध्यम से घोषित की जाती है और पैकेज पर ही घोषित नहीं की जाती है, उपभोक्ताओं को वस्तु के आकार और बीमा के लिए क्यूआर कोड को स्कैन करने के लिए सूचित करेगा " ;

(ख) उप नियम (2) में , परंतुक के स्थान पर, निम्नलिखित परंतुक रखा जाएगा, अर्थात्:-

"परन्तु एक इलेक्ट्रॉनिक उत्पाद के मामले में, ऐसे उत्पाद का पैकेज पैकेज पर ही दूरभाष नंबर और ई-मेल पता घोषित करेगा, और ऐसी घोषणा उपभोक्ताओं को अन्य संबंधित जानकारी के लिए क्यूआर कोड को स्कैन करने के लिए भी सूचित करेगी यदि ऐसी जानकारी क्यूआर कोड के माध्यम से घोषित की जाती है और पैकेज पर ही घोषित नहीं की जाती है।"

[फा. सं. आई-12/21/2020-डब्ल्यू एंड एम]

निधि खरे, अपर सचिव

टिप्पण : मूल नियम भारत के राजपत्र, असाधारण, भाग 2, खंड 3, उप-खंड (i) में सा.का.नि. 202(अ) तारीख 7 मार्च, 2011 द्वारा प्रकाशित किए गए थे और अधिसूचना संख्यां सा.का.नि. 412(अ), तारीख 5 जून 2023 द्वारा अंतिम बार संशोधित किए गए थे।

MINISTRY OF CONSUMER AFFAIRS, FOOD AND PUBLIC DISTRIBUTION

(Department of Consumer Affairs)

NOTIFICATION

New Delhi, the 23rd June, 2023

G.S.R. 456(E).—In exercise of the powers conferred by sub-section (1), read with clauses (j) and (q) of sub-section (2), of section 52 of the Legal Metrology Act, 2009 (1 of 2010), the Central Government hereby makes the following rules further to amend the Legal Metrology (Packaged Commodities) Rules, 2011, namely:-

1. (1) These rules may be called the Legal Metrology (Packaged Commodities) (Amendment) Rules, 2023.

(2) They shall come into force on the date of their publication in the Official Gazette.

2. In the Legal Metrology (Packaged Commodities) Rules, 2011, in rule 6,-

(a) in sub-rule (1),-

(i) in clause (a), for the proviso, the following proviso shall be substituted, namely:-

"Provided that in the case of an electronic product, the package of such product shall declare the name of the manufacturer or packer or importer, as the case may be, on the package itself, and such declaration shall also inform the consumers to scan the QR code for the address and other related information, if such information is declared through the QR Code and not declared on the package itself;"

(ii) in clause (b), for the proviso, the following proviso shall be substituted, namely:-

"Provided that in the case of an electronic product, the package of such product shall inform the consumers to scan the QR code for the common or generic name of the commodity and where such package contains more than one product, then for the name and number or quantity of each product, if such information is declared through the QR Code and not declared on the package itself;"

(iii) in clause (f), for the proviso, the following proviso shall be substituted, namely:-

“Provided that in the case of an electronic product, the package of such product shall inform the consumers to scan the QR code for the size and dimension of the commodity if such information is declared through the QR Code and not declared on the package itself”;

(b) in sub-rule (2), for the proviso, the following proviso shall be substituted, namely:-

“Provided that in the case of an electronic product, the package of such product shall declare the telephone number and e-mail address on the package itself, and such declaration shall also inform the consumers to scan the QR code for other related information if such information is declared through the QR Code and not declared on the package itself.”.

[F. No. I-12/21/2020-W&M]

NIDHI KHARE, Addl. Secy.

Note : The principal rules were published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) *vide* G.S.R. number 202 (E), dated the 7th March, 2011 and was last amended *vide* notification number G.S.R. 412 (E), dated the 5th June, 2023.

MINISTRY OF CONSUMER AFFAIRS, FOOD AND PUBLIC DISTRIBUTION**(Department of Consumer Affairs)****NOTIFICATION**

New Delhi, the 30th September, 2023

G.S.R. 714(E).—In exercise of the powers conferred by sub-section (1), read with clauses (j) and (q) of sub-section (2), of section 52 of the Legal Metrology Act, 2009 (1 of 2010), the Central Government hereby makes the following rules further to amend the Legal Metrology (Packaged Commodities) Rules, 2011, namely:-

1. (1) These rules may be called the Legal Metrology (Packaged Commodities) (Amendment) Rules, 2023.

(2) They shall come into force on the date of their publication in the Official Gazette.

2. In the Legal Metrology (Packaged Commodities) Amendment Rules, 2022, in rule 1, in sub-rule (2), for the figures, letters and words “1st day of October, 2023”, the figures, letters and words “1st day of January, 2024” shall be substituted.

[F. No. I-10/22/2021-WM]

NIDHI KHARE, Special Secy.

Note: The Legal Metrology (Packaged Commodities) Amendment Rules, 2022 were published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) *vide* number G.S.R. 226 (E), dated the 28th March, 2022 and last amended *vide* notification number G.S.R. 640 (E), dated the 30th August, 2023.

5. उक्त नियमों में, नियम 26 में, खंड (च) में, प्रथम परंतुक के पश्चात्, मद (iii) के स्थान पर निम्नलिखित परंतुक को अंतःस्थापित किया जाएगा, अर्थात्:-

(iii) सेंटीमीटर या मीटर के संदर्भ मीट्रिक अंकन में उत्पाद का आकार जैसा भी मामला हो या के साथ अंतर्राष्ट्रीय स्तर पर पहचाने जाने योग्य आकार संकेतकों जैसे कि एस, एम, एल, एक्सएल, एक्सएक्सएल और एक्सएक्सएक्सएल के साथ सेंटीमीटर या मीटर के संदर्भ में, या जैसा भी मामला हो मीट्रिक अंकन में विवरण के साथ हो सकता है।

6. उक्त नियमों में, नियम 26 में, खंड (च) के पश्चात्, निम्नलिखित खंड अंतःस्थापित किया जाएगा, अर्थात्:-

“(छ) इसमें ई-कॉमर्स चैनलों के माध्यम से ऑर्डर की गई खुली वस्तुएं शामिल हैं, जहां उपभोक्ता ऑर्डर की गई वस्तु, उसके प्रकार और मात्रा के बारे में जानते हैं;

परंतु ऐसी वस्तुओं को निम्नलिखित जानकारी वहन करनी होगी, अर्थात्:-

- (i) आयात किए गए उत्पादों के मामले में मूल देश या विनिर्माण देश के साथ विनिर्माता या विपणक या ब्रांड के मालिक या आयातक या विक्रेता का नाम और पता;
- (ii) कन्ज्यूमर केयर ई-मेल आईडी और फोन नम्बर;
- (iii) भारतीय मुद्रा में सभी करें सहित पैकेज का अधिकतम खुदरा मूल्य; और
- (iv) शुद्ध मात्रा, बाट या माप की मानक इकाई के संदर्भ में, या जहां वस्तु संख्या, वस्तु की संख्या द्वारा विक्रय की जाती है।

7. उक्त नियमों में, चौथी अनुसूची में, क्रम संख्या (11) के सामने, स्तम्भ 3 में प्रविष्टि के स्थान पर “वजन या आयतन और यदि शुद्ध मात्रा आयतन द्वारा घोषित की जाती है तो शुद्ध मात्रा वजन द्वारा भी घोषित की जाएगी” प्रविष्टि को रखा जाएगा।

[फा. सं. आई-10/22/2021 डब्ल्यू एंड एम]

निधि खरे, विशेष सचिव

टिप्पण: मूल नियम भारत के राजपत्र, असाधारण, भाग II, खंड 3, उप-खंड (i) में सा.का.नि. 202 (अ) तारीख 7 मार्च, 2011 द्वारा प्रकाशित किए गए थे और अधिसूचना संख्या सा.का.नि. 714(अ) तारीख 30 सितम्बर 2023 द्वारा अंतिम बार संशोधित किए गए थे।

MINISTRY OF CONSUMER AFFAIRS, FOOD AND PUBLIC DISTRIBUTION

(Department of Consumer Affairs)

NOTIFICATION

New Delhi, the 6th October, 2023

G.S.R. 722(E).—In exercise of the powers conferred by sub-section (1), read with clauses (j) and (q) of sub-section (2) of section 52 of the Legal Metrology Act, 2009 (1 of 2010), the Central Government hereby makes the following rules further to amend the Legal Metrology (Packaged Commodities) Rules, 2011, namely:-

1. Short title and commencement. – (1) These rules may be called the Legal Metrology (Packaged Commodities) Amendment Rules, 2023.

(2) Save as otherwise provided, these rules shall come into force on the 1st day of January, 2024.

2. In the Legal Metrology (Packaged Commodities) Rules, 2011 (hereinafter referred to as the said rules), in rule 2, after clause (k), the following clauses shall be inserted, namely:-

‘(ka) "combination package" means a package intended for retail sale, containing two or more individual packages, or individual pieces, of dissimilar commodities;

Illustration: A package containing dissimilar commodities such as, spoons, knives, forks, cups, napkins, or the like is a combination package;

(kb) "group package" means a package intended for retail sale, containing two or more individual packages, or individual pieces, of similar, but not identical (whether in quantity or size) commodities.

Explanation: Commodities which are generally the same but differ in weight, measure or volume, appearance or quality are similar, but not identical commodities.

Illustrations:

(i) A package containing,-

Two sponges -100 mmx 75 mm x 20 mm

One sponge -100 mmx 100 mm x 30 mm

Four sponges -100 mmx 50 mm x 15 mm

is a group package;

(ii) A package containing assorted biscuits is a group package;

(iii) A package containing similar commodities of different brands is a group package;

(kc) "multi-piece package" means a package containing two or more individual packaged or labelled pieces of the same commodities of identical quantity, intended for retail sale, either in individual pieces or the package as a whole:

Provided that for packages containing food articles, the provisions of the Food Safety and Standards Act, 2006 (34 of 2006) and the rules made thereunder shall apply.

Illustration:

(i) A package containing "5 toilet soap cakes of net weight 20g each and total net weight of 100 g" is a multi-piece package;”;

3. In the said rules, in rule 6, in sub-rule (1), in clause (d) after the third proviso, the following shall be inserted with effect from the 1st day of April, 2024, namely:-

“Provided also that nothing contained in this clause shall apply to spare parts and accessories used for the purpose of servicing with a warranty and not sold to end customers:

Provided also that for electronic products, spare parts and accessories, the declaration of month and year of manufacture shall be specified anywhere on the retail package in a visible and clearly legible manner.

Explanation: For the purpose of this clause, “spare parts and accessories shall include any “part”, “component”, or “accessories that are complementary to the main or core product” of a machine, device or equipment, by whatever name called, including parts that are sold separately for use in support or replacement of a damaged or worn-out part, in order to have intended operation or functioning of the machine, device or equipment.”.

4. In the said rules, in rule 6, in sub-rule (11), after the second proviso, the following proviso shall be inserted, namely:-

“Provided also that declaration of unit sale price is not required for a combination package or a group package or a multi-piece package, under these rules or under any other law for the time being in force.”.

5. In the said rules, in rule 26, in clause (f), in the first proviso, for item (iii), the following item shall be substituted, namely:-

“(iii) size of the product in metric notation in terms of cm or m, as the case may be, or with internationally recognizable size indicators such as S, M, L, XL, XXL and XXXL along with details in metric notation in the terms of cm or m, as the case may be;”.

6. In the said rules, in rule 26, after clause (f), the following clause shall be inserted, namely:-

“(g) it contains loose commodities ordered through e-commerce channels, where consumers are aware of the ordered commodity, its type and quantity:

Provided that such commodities shall bear the following information, namely:-

(i) name and address of manufacturer or marketer or brand owner or importer or seller with the country of origin or manufacture in the case of imported products;

(ii) consumer care email id and phone number;

- (iii) retail sale price of the package inclusive of all taxes in the Indian currency; and
- (iv) net quantity, in terms of the standard unit of weight or measure, or where the commodity is sold by number, the number of the commodity.

7. In the said rules, in the FOURTH SCHEDULE, against serial number (11), for the entry in column 3, the entry “weight or volume and if the net quantity is declared by volume, the net quantity shall also be declared by weight” shall be substituted.

[F. No. I-10/22/2021-W&M]

NIDHI KHARE, Special Secy.

Note: The principal rules were published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) *vide* G.S.R. number 202 (E), dated the 7th March, 2011 and was last amended *vide* number G.S.R. 714 (E), dated 30th September, 2023.

3. मूल नियमों के, नियम 7 में, -

(i) उप-नियम (2) में, अंत में निम्नलिखित परंतुक अंतःस्थापित किया जाएगा, अर्थात्: -

"परंतु यह कि चिकित्सा युक्तियां अंतर्विष्ट करने वाले पैकेजों के लिए, घोषणा करने हेतु किसी भी अंक और अक्षर की ऊंचाई के लिए, चिकित्सा युक्ति नियम, 2017 के उपबंध लागू होंगे।";

(ii) उप-नियम (3) में, अंत में निम्नलिखित परंतुक अंतःस्थापित किया जाएगा, अर्थात्: -

"परंतु यह कि चिकित्सा युक्तियां अंतर्विष्ट करने वाले पैकेजों के लिए, घोषणा करने हेतु किसी भी अंक और अक्षर की चौड़ाई के लिए, चिकित्सा युक्ति नियम, 2017 के उपबंध लागू होंगे।"

4. मूल नियमों में, नियम 33 उप-नियम (1) के रूप में संख्यांकित होगा और इस प्रकार संख्यांकित नियमों के पश्चात्, निम्नलिखित उप-नियम अंतःस्थापित किया जाएगा, अर्थात्: -

"(2) उस दशा में जहां चिकित्सा युक्ति नियम, 2017 लागू होते हैं, इस नियम के अधीन दिया गया शिथलीकरण लागू नहीं होगा।"

[फा. सं. I-19/33/2022 डब्ल्यू एंड एम]

अनुपम मिश्रा, संयुक्त सचिव

टिप्पण : मूल नियम, भारत के राजपत्र, असाधारण, भाग II, खंड 3, उपखंड (i) में सा.का.नि. संख्या 202(अ), तारीख 7 मार्च, 2011 द्वारा प्रकाशित किए गए थे और अंतिम बार सा.का.नि. संख्या 722(अ) तारीख 6 अक्टूबर, 2023 द्वारा संशोधित किए गए थे।

MINISTRY OF CONSUMER AFFAIRS, FOOD AND PUBLIC DISTRIBUTION

(Department of Consumer Affairs)

NOTIFICATION

New Delhi, the 23rd October, 2025.

G.S.R. . 778(E).—In exercise of the powers conferred by (j) and (q) of sub-section (2) of section 52 of the Legal Metrology Act, 2009 (1 of 2010), the Central Government hereby makes the following rules further to amend the Legal Metrology (Packaged Commodities) Rules, 2011, namely:-

1. Short title and commencement. – (1) These rules may be called the Legal Metrology (Packaged Commodities) Amendment Rules, 2025.

(2) They shall come into force on the date of their publication in the official gazette.

2. In the Legal Metrology (Packaged Commodities) Rules, 2011 (hereinafter referred to as the principal rules), in rule 2, to clause (h), the following proviso shall be inserted, namely:-

“Provided that for packages containing medical devices, the provisions of the Medical Devices Rules, 2017, shall apply to make declarations;”.

3. In the principal rules, in rule 7,-

(i) in sub-rule (2), the following proviso shall be inserted at the end, namely:-

“Provided that for packages containing medical devices, the provisions of the Medical Devices Rules, 2017, shall apply for the height of any numeral and letter to make declarations.”;

(ii) to sub-rule (3), the following proviso shall be inserted at the end, namely:-

“Provided that for packages containing medical devices, the provisions of the Medical Devices Rules, 2017, shall apply for the width of any numeral and letter to make declarations.”.

4. In the principal rules, rule 33 shall be numbered as sub-rule (1) and after the rules as so number, the following sub-rule shall be inserted, namely:-

“(2) In case where the Medical Devices Rules, 2017 are applicable, the relaxation given under this rule shall not apply.”.

[F. No. I-19/33/2022-W&M]

ANUPAM MISHRA, Jt. Secy.

Note : The principal rules were published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) *vide* number G.S.R. 202(E), dated the 7th March, 2011 and was last amended *vide* number G.S.R. 722(E), dated 6th October, 2023.

2. विधिक मापविज्ञान (पैकज में रखी वस्तुएं) नियम, 2011 के नियम 26 के, खंड (क) में, पहले परंतुक के पश्चात्, निम्नलिखित परंतुक अंतः स्थापित किया जाएगा, अर्थात्: -

"परंतु यह और कि इस खंड के उपबंध पान मसाला पर लागू नहीं होंगे;"।

[फा. सं. I-10/4/2025 डब्ल्यू एंड एम]

अनुपम मिश्रा, संयुक्त सचिव

टिप्पण: मूल नियम, भारत के राजपत्र, असाधारण, भाग II, खंड 3, उपखंड (i) में सा.का.नि. संख्या 202(अ), तारीख 7 मार्च, 2011 द्वारा प्रकाशित किए गए थे और अंतिम बार सा.का.नि. संख्या 778 (अ) तारीख 23 अक्टूबर, 2025 द्वारा संशोधित किए गए थे।

MINISTRY OF CONSUMER AFFAIRS, FOOD AND PUBLIC DISTRIBUTION

(Department of Consumer Affairs)

NOTIFICATION

New Delhi, the 2nd December, 2025

G.S.R. 881(E).— In exercise of the powers conferred by clauses (j) and (q) of sub-section (2) of section 52 of the Legal Metrology Act, 2009 (1 of 2010), the Central Government hereby makes the following rules further to amend the Legal Metrology (Packaged Commodities) Rules, 2011, namely:-

1. Short title and commencement. – (1) These rules may be called the Legal Metrology (Packaged Commodities) Second (Amendment) Rules, 2025.

(2) They shall come into force on the 1st day of February, 2026.

2. In the Legal Metrology (Packaged Commodities) Rules, 2011, in rule 26 in clause (a), after the first proviso, the following proviso shall be inserted, namely:-

"Provided further that the provisions of this clause shall not apply to pan masala."

[F. No. I-10/4/2025-W&M]

ANUPAM MISHRA, Jt. Secy.

Note: The principal rules were published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) vide number G.S.R. 202 (E), dated the 7th March, 2011 and was last amended vide number G.S.R. 778 (E), dated 23rd October, 2025.

2. विधिक माप विज्ञान (पैकज में रखी वस्तुएं) नियम, 2011 के नियम 6 के उप नियम (10 क) के स्थान पर, निम्नलिखित उप नियम रखा जाएगा, अर्थात्: -

“(10 क) प्रत्येक ई- वाणिज्य इकाई, जो किसी आयातित उत्पाद को विक्रय के लिए प्रस्थापित करती है, 1 जुलाई, 2027 से यह सुनिश्चित करेगी कि ऐसे आयातित उत्पाद की उत्पाद सूची में उद्भव के देश को विनिर्दिष्ट करने के लिए खोज योग्य और श्रेणी बद्धकरणीय फिल्टर अंतर्विष्ट हो।”

[फा. सं. I-9/5/2023- डब्ल्यू एंड एम]

अनुपम मिश्रा, अपर सचिव

टिप्पण: मूल नियम, भारत के राजपत्र, असाधारण, भाग II, खंड 3, उपखंड (i) में संख्या सा.का.नि. 202 (अ), तारीख 7 मार्च, 2011 द्वारा प्रकाशित किए गए थे और अंतिम बार संख्या सा.का.नि. 128 (अ) तारीख 13 फरवरी, 2026 द्वारा प्रकाशित किए गए थे।

MINISTRY OF CONSUMER AFFAIRS, FOOD AND PUBLIC DISTRIBUTION

(Department of Consumer Affairs)

NOTIFICATION

New Delhi, the 27th April, 2026

G.S.R. 312(E).— In exercise of the powers conferred by sub-section (1) read with clauses (j) and (q) of sub-section (2) of section 52 of the Legal Metrology Act, 2009 (1 of 2010), the Central Government hereby makes the following rules further to amend the Legal Metrology (Packaged Commodities) Rules, 2011, namely:-

1. Short title and commencement.- (1) These rules may be called the Legal Metrology (Packaged Commodities) Second Amendment Rules, 2026.

(2) They shall come into force on the 1st day of July, 2027.

2. In the Legal Metrology (Packaged Commodities) Rules, 2011, in rule 6 for sub-rule (10A), the following sub-rule shall be substituted, namely:-

“(10A) Every e-commerce entity offering for sale any imported product shall, with effect from the 1st day of July, 2027, ensure that the product listing of such imported product contains a searchable and sortable filter specifying the country of origin.”

[F. No. I-9/5/2023-W&M]

ANUPAM MISHRA, Addl. Secy.

Note: The principal rules were published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) *vide* number G.S.R. 202 (E), dated the 7th March, 2011 and was last amended *vide* number G.S.R. 128(E), dated 13th February, 2026.